

Ravi Basavaraj vs The State Of Karnataka on 16 April, 2026

Author: Hanchate Sanjeevkumar

Bench: Hanchate Sanjeevkumar

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NC: 2026:KHC-D:5639
CRL.P No. 100680 of 2026

HC-KAR

IN THE HIGH COURT OF KARNATAKA, AT DHARWAD

DATED THIS THE 16TH DAY OF APRIL, 2026

BEFORE

THE HON'BLE MR. JUSTICE HANCHATE SANJEEVKUMAR

CRIMINAL PETITION NO.100680 OF 2026
(407 OF Cr.PC/447 OF BNSS)

BETWEEN:

1. RAVI BASAVARAJ
AGE: 30 YEARS, OCC: DRIVER,
R/O. NEAR COMMERCIAL TAX OFFICE,
RAGHAVENDRA COLONEY, BALLARI.

PERMANENT ADDRESS:
11TH WARD, 6TH LIAN,
LINGARAJA CAMP, GANGAVATHI,
DIST. KOPPAL, PIN-583231.

2. VIJAY @ MAILARI

S/O. HANUMANTAPPA,

AGE: 27 YEARS, OCC: LABOURER,

R/O. INDRA NAGAR, 15TH WARD,
GANGAWATHI, KOPPAL.

PERMANENT ADDRESS:

Digitally signed
by RAMYA D
Location: High
Court of
Karnataka,

Dharwad
Bench

11TH WARD, 6TH LIAN,
LINGARAJA CAMP, GANGAVATHI,
DIST. KOPPAL, PIN-583231.

3. DHANARAJA
@ LAXMANARAVA MARATHI,
AGE: 24 YEARS, OCC: LABOURER

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R/O. HRS COLONY,
GANGAVATHI, KOPPAL.

PERMANENT ADRESS:
HRS COLONY, GANGAVATHI,
DIST. KOPPAL, PIN: 583231.

4. BHIMA @ BHARATA S/O. KARIYAPPA,
AGE: 23 YEARS, OCC: LABOURER,
R/O. 17TH WARD,
AMARAGHAGATHA SING NAGAR,
GANGAWATHI, KOPPAL.

PERMANENT ADRESS:
HRS COLONY, GANGAVATHI,
DIST. KOPPAL, PIN: 583231.

5. SALIM S/O. MAHMAD RAFIK,
AGE : 21 YEARS, OCC: LABOURER
R/O. AMARAGHAGATHA SING NAGAR,
GANGAWATHI, KOPPAL.

PERMANENT ADRESS:
AMARAGHAGATHA SING NAGAR,
GANGAWATHI, KOPPAL.

6. GANGADHAR S/O. BABURAVA GOULI,
AGE: 28 YEARS, OCC: DRIVER,
R/O. 23RD WARD, GUNDAMMA CAMP,
GANGAWATHI, KOPPAL.

PERMANENT ADRESS
23RD WARD, GUNDAMMA CAMP,
GANGAWATHI, KOPPAL.

7. KARTHIK

S/O. DURGAPPA GODDBAL,
AGE: 23 YEARS, OCC: LABOURER,
R/O. AMARAGHAGATHA SING NAGAR,
GANGAWATHI, KOPPAL.

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PERMANENT ADRESS:
AMARAGHAGATHA SING NAGAR,
GANGAWATHI, KOPPAL.

8. DADAFEER
S/O. ABDUL ROUF PRINCE,
AGE: 28 YEARS,
R/O. RAGHAVENDRA COLONY,
BALLARI, KOPPAL.

PERMANENT ADRESS:
RAGHAVENDRA COLONY, BALLARI,
DIST. KOPPAL, PIN: 583231.

9. MAHMAD ALTAF
S/O. MEHIBOOB PASH,
AGE: 18 YEARS, OCC: COOK,
R/O. RAGHAVENDRA COLONY,
BALLARI, KOPPAL.

PERMANENT ADRESS:
RAGHAVENDRA COLONY, BALLARI,
KOPPAL, PIN: 583231.

10. CHAITRA W/O. RAVI,
AGE: 28 YEARS, OCC: HOUSE WIFE,
R/O. NEAR COMMERCIAL TAX OFFICE,
RAGHAVENDRA COLONY,
BALLARI, KOPPAL.

PERMANENT ADDRESS:
LINGARAJA CAMP, GANGAVATHI,
KOPPAL, PIN: 583231.

...PETITIONERS

(BY SRI V. M. SHEELAVANT, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA,
BY PSI GANGAVATHI TOWN

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POLICE STATION, REPRESENTED BY
STATE PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
DHARWAD-580001.

2. HAMPANNA
S/O. AYYAPPA JANTAGAL
AGE: 55, OCC: LABOURER,
R/O. SUNAGAR ONI,
NEAR JAGADAMBHA RICE MILL,
MURAHARI NAGAR,
GANGAVATHI-583231.

...RESPONDENTS

(BY SRI GANGADHAR J. M., AAG FOR
SRI ABHISHEK MALIPATIL AND
SRI DAYANAND SANGRESHI HCGP FOR R1;
SRI RAMESH B. CHIGARI, ADV. FOR R2)

THIS CRIMINAL PETITION IS FILED UNDER SECTIONS 407
OF THE CODE OF CRIMINAL PROCEDURE, (U/S.447 OF BNSS
2023) PRAYING TO TRANSFER S.C.NO. 05/2026 PENDING ON
THE FILE OF THE I ADDITIONAL DISTRICT AND SESSIONS
JUDGE, KOPPAL (SITTING AT GANGAVATHI) REGISTERED FOR
THE OFFENCES PUNISHABLE UNDER SECTIONS 189(2), 191(2),
191(3), 49, 56, 61(2), 103(1), 109(1), 249(B), 238, 190 OF
BNS 2023, TO ANY OTHER SESSIONS COURT HAVING
JURISDICTION TO TRY OR TO ANY OTHER COURT, WHICH THIS
HON'BLE COURT THINKS FIT TO MEET ENDS OF JUSTICE
AND ETC.

THIS PETITION COMING ON FOR DICTATING ORDERS,
THIS DAY ORDER WAS MADE THEREIN AS UNDER:

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NC: 2026:KHC-D:5639
CRL.P No. 100680 of 2026

HC - KAR

CORAM: THE HON'BLE MR. JUSTICE HANCHATE SANJEEVKUMAR

ORAL ORDER

This petition is filed under Section 407 of the Criminal Procedure Code, 1973 ('Cr.P.C.', for short), read with Section 447 of Bharatiya Nagarik Suraksha Sanhita, 2023 ('BNSS' for short), by accused Nos.1 to 9 and 12 praying to transfer the Sessions Case in S.C.No.5/2026, pending on the file of I Additional District and Sessions Court, Koppal, sitting at Gangavathi, to any other Sessions Court having jurisdiction to try or to any other Court which this Court thinks fit.

I) FACTS TO CONSIDER IN THIS PETITION:

2. It is the brief case of the prosecution that the petitioners/accused have committed murder of the deceased Venkatesh and facing charges for the offence punishable under Section 189(2), 191(2), 191(3), 49, 56, 61(2), 103(1), 109(1), 249(B), 238, 190 of Bharatiya Nyaya Sanhita, 2023. It is further case of the prosecution NC: 2026:KHC-D:5639 HC-KAR that after compliance of all legal formalities, the trial has begun and all the charge sheet witnesses have been examined and posted the matter for examination of accused under Section 313 of Cr.P.C./under Section 351 of BNSS and at that moment this petition is filed praying to transfer the Sessions Case to any other Sessions Court in the same Sessions Division. The petitioners/accused are in Judicial Custody.

II) GROUNDS RAISED IN THE PETITION:

3. The above stated petitioners/accused have raised various grounds in the petition for seeking transfer claiming that the petitioners have not committed offence as alleged against them. The petitioners have fundamental rights to choose their advocate of their choice. It is the main ground that the learned Sessions Judge has abused the petitioners' counsel and discharging vakalath of the petitioners advocates and not providing the petitioners an opportunity to engage advocate of their choice and appointing District NC: 2026:KHC-D:5639 HC-KAR Legal Aid Defence Counsel ('DLADC' for short) to cross examine the witnesses on the same date is not a fair trial.

Further, the learned Sessions Judge has not uploaded the depositions of the witnesses and therefore the learned Sessions Judge has acted arbitrarily. Further raised ground that the learned Sessions Judge is bent upon to convict the petitioners at any event and therefore the learned Sessions Judge has prejudiced himself against the petitioners/accused.

4. Further raised ground that the petitioners have engaged an advocate from out of the Sessions Division/District and compelling the advocate coming from other District and traveling day to day is

causing inconvenience to them. Therefore, trial is not fixed at the convenience of the advocates. Further raised ground that fixing dates of trial were at whims and fancies of the Presiding Officer of the Court, but has not taken convenience and confidence of the advocate of the accused. Further raised ground that the Presiding Officer has NC: 2026:KHC-D:5639 HC-KAR addressed the petitioners advocates while conducting Sessions trial has called them as goondas, is nothing but arbitrary and showing prejudiced mind of the Presiding Officer. Therefore, vitiates the entire proceedings and contentions. Further raised ground that the Presiding Officer/Sessions Judge is bent upon to convict the petitioners without conducting fair trial and trying to gain media publicity at the cost of life of the petitioners. Therefore, the petitioners have shown their apprehension that there is no fair trial.

5. Further raised ground that mere reasonable apprehension is enough to transfer the case as per the judgment of this Court reported in Crl.L.J. 1975 page 744.

6. Further raised ground that the entire order sheet discloses that the petitioners have been falsely charged and would not get justice at the hands of the present Court, in which the Sessions trial is going on. Therefore, prays for transfer of the case.

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7. Further raised ground that, upon perusal of the order sheet, the way in which the learned Sessions Judge is trying the case does not depict a fair and proper trial and thus the fundamental right of the accused as per Article 21 of the Constitution of India is violated. Therefore, prays to transfer the case to some other Sessions Court in the same Sessions Division.

8. Heard the arguments of Sri V.M.Sheelavant, learned counsel for petitioners/accused Nos.1 to 9 and 12, Sri Gangadhar J.M., learned Additional Advocate General for respondent No.1 State and Sri Ramesh Chigari, learned counsel for respondent No.2 and perused the material placed before the Court.

III) ARGUMENTS BY LEARNED COUNSEL FOR PETITIONERS:

9. Learned counsel for the petitioners vehemently submitted with reference to the order sheet produced during the course of argument that the way in which the

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NC: 2026:KHC-D:5639 HC-KAR learned Sessions Judge is conducting trial is not fair and proper. Further submitted that accused Nos.1 to 9 and 12 are yet to engage services of advocate, but without giving opportunity of engaging service of advocate, the learned Sessions Judge has framed charges and on the very next date proceeded with trial without giving opportunity to hear the petitioners/accused for engaging service of advocate of their choice and appointing DLADC is not correct. It is argued that the accused have fundamental right to appoint their own advocate as per their choice, but that is not provided to the accused. Even though the DLADC is appointed, but

insisting on the very same day to conduct examination of prosecution witnesses is nothing but the leaned Sessions Judge is having prejudicial mind against the accused persons to convict them. Therefore, submitted that there is no fair trial in the Sessions case and ultimately it affects the life and liberty of the petitioners. Therefore, the learned counsel for the petitioners has complained heavily on the leaned Sessions Judge and submitted that proper

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NC: 2026:KHC-D:5639 HC-KAR opportunity for defending the accused is not given and therefore, there is no fair trial. Hence the trial is amounting to mockery of justice. Hence, prays to transfer case to another Sessions Court in the same division.

10. Learned counsel for the petitioners by taking the order sheet of the Sessions Court has argued that sufficient opportunities are not given. In the order sheet throughout the proceedings it is noted in the Sessions case order sheet that so far as accused No.1 to 9 is concerned the matter is posted for engaging counsel. Therefore, when the stage is for appointing advocates by the petitioners/accused, but the charges are framed, trial dates are fixed and proceeded with the trial in absence of accused. Further submitted that though the learned Sessions Judge has mentioned the judgment of the Hon'ble Supreme Court on every date of hearing in the order sheet but has deliberately not followed the one of the condition that dates of trial to be fixed at the convenience of the advocate. Therefore, the leaned Sessions Judge after framing charge before fixing the case

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NC: 2026:KHC-D:5639 HC-KAR for trial ought to have taken convenience and confidence of the advocate. But it is submitted that the order sheet of the Sessions case depicts the dates fixed for trial are at the whims and fancies of the leaned Sessions Judge without bothering about the convenience of the accused and their counsels. Therefore, submitted that the speedy and expeditious trial does not mean that it is done at the cost of fair trial. Therefore, it is made a substantial ground for the petitioners as submitted by the learned counsel for the petitioners that the leaned Sessions Judge is not discharging duty properly and is not fair in conducting trial and the learned Sessions Judge is having prejudiced mind to convict the accused. Therefore, prays to transfer the case as prayed for.

IV) ARGUMENTS BY LEARNED ADDITIONAL ADVOCATE GENERAL:

11. On the other hand, the learned Additional Advocate General for the State and also learned counsel for

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NC: 2026:KHC-D:5639 HC-KAR respondent No.2 submitted that the leaned Sessions Judge has followed the guidelines issued by the Hon'ble Supreme Court in a catena of decisions in letter and spirit in conducting the trial on day to day basis and is not in any way prejudicing the right of the accused.

12. It is further submitted that the petitioners/accused are facing charges of culpable homicide amounting to murder and other charges and accused No.1 is facing 16 cases and according to the prosecution case, he is an antisocial element and even is not bothering about the Courts and judiciary. Therefore, as per the guidelines of Hon'ble Supreme Court the learned Sessions Judge is conducting trial without committing any lapse in the proceedings. Therefore, submitted that the grounds raised by the petitioners in the petition are baseless. Further submitted that, just because trial is conducted on day to day basis as per the guidelines of Hon'ble Supreme Court and as per necessary mandatory provisions under Section 309 of Cr.P.C., that would not cause any prejudice to the

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NC: 2026:KHC-D:5639 HC-KAR rights of the accused. The petitioners have engaged service of advocate and after hearing them, charges were framed and dates for trial were fixed and the petitioners have kept silence till exhaustion of evidence of prosecution witnesses and when the case is posted for examination of accused under Section 313 of Cr.P.C./Section 351 of BNSS, 2023 at that moment the petitioners have filed this petition is nothing but dragging the case. Therefore submitted that the petition is not maintainable. Further submitted that before filing this petition before this Court the petitioners ought to have approached the Principal District and Sessions Judge and without doing so, straightway coming to this Court disentitles maintaining the petition for transfer. Further submitted that every transfer petition shall be supported by affidavit but in the present case the petition is annexed only verifying affidavit. Thus, the verifying affidavit is not sufficient. On this ground also it submitted that the petition is not maintainable.

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13. Further submitted that since the stage of registration of crime the accused have engaged service of advocate and also after committal to the Sessions Court from the learned Magistrate, the accused have engaged service of advocate even after committal and thus filed copy of vakalaths filed by advocates for the accused filed before the crime stage and even after committal and at the time of registration of the Sessions case. Therefore, submitted the trial is fair one.

14. Further submitted with reference to the observations made in the order sheet that the advocates of the accused have threatened the Court and also witnesses and it is noted down in the order sheet. Thus, the advocates for accused are liable for facing legal action including criminal contempt of Court.

15. The learned Additional Advocate General for respondent No.1 State and learned counsel for respondent No.2 submitted that, during the midst of the trial the

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NC: 2026:KHC-D:5639 HC-KAR advocate for the accused have created a scene in the Court Hall during conducting the trial by threatening the judge is amounting to threatening the Judge and witnesses as in detail described in the order sheet. Therefore, submitted that the advocate for the accused are also amenable for legal action. Therefore submitted that the entire trial is found to be fair and following every provisions of Cr.P.C./BNSS. Therefore, prays to dismiss the petition.

16. Upon hearing the arguments of both the sides the following points would arise for consideration.

i) Whether, under the facts and circumstances involved in the case, the petitioners/accused prove that the learned Sessions Judge conducting trial in S.C.No.5/2026 being Presiding Officer of the I Additional District and Sessions Court, Koppal, sitting at Gangavathi, is not conducting fair trial?

ii) Whether, under the facts and circumstances involved in the case, upon observations made by the learned Sessions Judge in the order sheet in the Sessions Case No.5/2026, on the file of I Additional District and Sessions Court, Koppal, sitting at Gangavathi, the advocates as per recorded in order sheet

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NC: 2026:KHC-D:5639 HC-KAR dated 16.03.2026 are amenable for legal action upon professional misconduct?

V) REASONING:

17. The accused are facing charge of culpable homicide amounting to murder and is pending before the Court of I Additional District and Sessions Judge, Koppal, sitting at Gangavathi. In order to ascertain whether there is fair trial or not, it is worthwhile to discuss the chronological events in the trial from inception.

18. Learned counsel for the petitioners and also the learned Additional Advocate General and learned counsel for respondent No.2 have placed their synopsis along with dates of events in the trial and certified copies of order sheet maintained in the Sessions Case No.5/2026. Since it is argued regarding the trial, therefore, the chronological dates of events are discussed from the date of committal to the Sessions Court. The Sessions Court after receiving papers of the case after making over to the Court of

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NC: 2026:KHC-D:5639 HC-KAR I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, has issued intimation to the concerned jail authority to produce accused Nos.1 to 11 through video conference and issued summons to accused No.12 returnable by 18.02.2026.

19. On 18.02.2026, accused Nos.6 to 9 were produced from Hadagali jail through VC and accused Nos.10 and 11 are produced from Koppal and accused Nos.2 to 5 are produced from Harapahanalli

through VC. On that day accused Nos.1 to 9 have submitted that they engaged a counsel by name Sri Krishna Naik as their counsel and he would be present on the next date of hearing and also on behalf of accused Nos.10 and 11, advocate by name IK and UAM have filed vakalath. On that day learned counsel for accused No.11 filed discharge application under Section 250 of BNSS and for objection to the said application, the case was posted on next date 20.02.2026.

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20. Though in the order sheet it is mentioned for engaging counsel by accused Nos.1 to 9, but the learned Additional Advocate General filed memo along with certified copies of vakalath and argued that from the stage of crime soon after arrest the accused, the accused have availed services of advocate. The petitioners are in custody. Therefore, they have executed vakalath from jail in the presence of Superintendent of Taluka Sub-Jail, Huvinahadagali. Therefore, the vakalath shows, during committal stage and after committal of the case to the Session Court, the accused/petitioners have engaged service of advocate. The learned counsel for petitioners much argued that in the order sheet filing of vakalath is not mentioned in the order sheet. Therefore, argued that the stage is still regarding service of advocate. But the very fact that production of vakalath executed by accused at the crime stage and also filing of memo of appearance by the accused after committal shows, the accused have consciously engaged service of advocates on their own choice as per

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NC: 2026:KHC-D:5639 HC-KAR their will and wish. Therefore, there is no merit found in the argument canvassed by the learned counsel for petitioners so far as the opportunities were not provided for engaging service of advocate. Though in the order sheet it is noted engaging service of advocate, but mere non writing in the order sheet that accused Nos.1 to 9 to be engaged advocate is not a ground to consider that the accused have not engaged service of advocate. The very memo filed by the learned Additional Advocate General along with certified copies of vakalath and memo of appearance, proved the fact that the petitioners/accused and other accused have engaged service of advocate since inception from the date of arresting the petitioners.

21. The certified copy of vakalat issued by the Court of I Additional District and Sessions Judge, Gangavathi, shows, accused Nos.1, 2 to 5, 6 to 9 have engaged advocates by name M.A.Byalirotti Law Chambers and Associates. The names of advocates are M.A.Byalirotti and Krishna Naik. The signatures of said advocates are found in

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NC: 2026:KHC-D:5639 HC-KAR the vakalath. The vakalath produced by the learned Additional Advocate General shows, before committal and when the case is pending before the Court of Magistrate, awaiting the order for committal, the accused have engaged service of advocates as above stated. Also the vakalath produced by accused Nos.10 and 11 shows that they have engaged

service of advocate one Sri HV and Sri Imrakhan advocates and also after committal of the case to the Sessions Court, in Sessions Case also the accused have filed vakalath and memo of appearance. Therefore, the copies of vakalath produced by learned Additional Advocate General prove the fact that the accused have engaged service of advocate. All the vakalaths have been filed on 13.01.2026, 23.01.2026, 18.02.2026 and 20.02.2026. Therefore, as on the date of committal order passed and committing the case to the Sessions Court, and after registering the case as Sessions case, the petitioners have engaged services of advocates as it is proved from the certified copies of vakalats filed by the learned Additional Advocate General.

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NC: 2026:KHC-D:5639 HC-KAR Therefore, as on 20.02.2026 all the accused have filed their respective vakalaths for all the accused. Therefore the accused are well represented by their own advocates upon their choice and according to their will and wish.

22. Accused No.11 filed application for discharge under Section 250 of BNSS, which is dismissed on 20.03.2026. An opportunity was also given on the side of other accused to file application for discharge, but they have not filed according to their discretion. But the arguments is canvassed by the learned counsel for petitioners that an opportunity was not given for filing application for discharge cannot be accepted for the reason that when the other accused have opportunity to file application for discharge and even they have not filed, therefore the learned Sessions Judge is correct and right of hearing the accused before framing charge and after hearing the accused and their counsel, has framed charge. Therefore, it is found there is no any lapse on the part of the Sessions Court for ordering for framing charge. It is

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NC: 2026:KHC-D:5639 HC-KAR important to note that the accused are facing serious charges of commission of murder and quite naturally the Sessions Courts are working and acting on the oral submission of the learned advocates on charge. Therefore, just because non writing in the order sheet that the other accused have not filed application for discharge is not a ground to say that there is no hearing before charge. The accused No.11 has wished and opted to file application for discharge and that is considered and accordingly passed order on 23.02.2026 and other accused have not filed application for discharge. Therefore, the learned Sessions Judge has proceeded further to hear before framing charge and accordingly after hearing framed charge. Therefore, at this stage there is no lapse committed by the learned Sessions Judge in framing charge.

23. As discussed above, all the accused have engaged service of advocate on their own choice and as per their own wisdom. Hence, before framing of charge the advocates were also heard and framed charges. Further

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NC: 2026:KHC-D:5639 HC-KAR accused No.10 has also filed application for discharge under Section 250 of BNSS and after receiving objection by the prosecution, the said application is dismissed as having become infructuous. The said application is filed on 24.02.2026, but before that on 23.02.2026 charges were framed. Therefore after framing charges accused No.10 filed application for discharge is nothing but an attempt to make protracting the trial on the guise of filing application for discharge. Therefore, at the very initial point of time the accused have made attempt to protract the trial of the proceedings.

24. It is also recorded that at the time of hearing before charge and framing of charge, it is noted, the accused have pleaded not guilty and claimed to be tried. Therefore, the learned Sessions Judge has followed the procedures while framing charge and has noted down in the order sheet that the accused pleaded not guilty and claimed to be tried. Accordingly for fixing the date of trial the date is given on 27.02.2026. Therefore, after framing charge, the

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NC: 2026:KHC-D:5639 HC-KAR learned Sessions Judge has not directly fixed the dates for trial, but has given sufficient opportunity to the advocates for fixing date of trial which can be found in the order sheet dated 27.02.2026 and 02.03.2026. Therefore, when on the date on 23.02.2026 after framing charge the accused pleaded not guilty and claimed to be tried, then on next two dates opportunity was given to the advocates for accused for fixing date of trial as stage for FDT on the dates on 27.02.2026 and 02.03.2026 enable the advocates for preparing for trial as per their convenience.

25. Then on 03.03.2026, the learned Sessions Judge has fixed dates for trial commencing from 05.03.2026 till the date 16.03.2026. It is noted down on 03.03.2026 in the order sheet that all the counsels are present. As discussed above, during crime stage and after committal of the case to the Sessions Court and registering the case as Sessions Case, all the accused have engaged advocates and advocates have filed their respective vakalaths for accused and therefore on 03.03.2026 the advocates were present

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NC: 2026:KHC-D:5639 HC-KAR and in the presence of them the date of trial were fixed. Therefore, there is no merit in the argument canvassed by the learned counsel for petitioners that the Clause (6) of the Circular issued by this Court and the direction of the Hon'ble Supreme Court is not followed. The learned Sessions Judge has fixed the date of trial at the convenience of the advocates. The order sheet shows that after taking convenience of the advocates and they were present and by recording that both the advocates are present, then the date for trial are fixed commencing from 05.03.2026 to 16.03.2026. Therefore, the order sheet maintained in the Sessions Case shows, in presence of advocates the dates of trial are fixed.

26. It is a normal procedure and practice that keeping pending some material objects, charge sheet can be filed so that to avoid delay in filing charge sheet since some material objects are yet to be

received from the FSL and other offices, which cannot be found fault with. Likewise, when dates for trial are fixed, some of material

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NC: 2026:KHC-D:5639 HC-KAR objects were yet to be filed/produced, therefore to avoid delay in fixing the date of trial awaiting the production of material objects, the date of trial can be fixed. This procedure cannot be found fault with. The production of some material objects from FSL may consume some time and there is no rule that unless production of material from the FSL, dates of trial cannot be fixed. This procedure goes to avoid delay in the trial. What the thing is to be followed and considered is that, during the trial in examination of witnesses the concerned material objects shall be produced. Therefore, production of material objects till the police have obtained till the date of examination of witnesses, this procedure followed by the Sessions Court is found to be correct and there is no lapse in this regard in following the procedures.

27. On 05.03.2026 when the trial is commenced of examination of prosecution witnesses, accused Nos.1 to 9 were produced through video conference and accused Nos.8 and 11 are produced physically and accused No.12 was

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NC: 2026:KHC-D:5639 HC-KAR present and on that date one sealed cover is opened and found a pen-drive and the learned Sessions Court has ordered to furnish a copy of pen-drive to the counsel for the accused persons.

28. When the dates of trial are fixed, there is no grievance expressed by the advocates for the accused that they have not received copy of charge sheet by the Court of Magistrate. If the advocates of accused had any grievance regarding non-receipt of charge sheet, then immediately after committal of the case to Sessions Court and registering the case as Sessions Case when advocates filing vakalath and memo of appearance in the Sessions Case, the advocates would have mentioned the Court that they have not received copies of the charge sheet. But there is no complaint in this regard by the learned counsel for accused. There is no any submission by learned counsel for accused that they have not received copies of charge sheet. Even on 05.03.2026 when the trial has been commenced, a sealed cover is opened in the Open Court and found one pen-drive

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NC: 2026:KHC-D:5639 HC-KAR and it is ordered to furnish copies of pen-drive and it is noted down in the order sheet. On this day also there was no grievance by the advocates for accused that they have not received copy of charge sheet. Therefore, it means, during crime stage only after filing the charge sheet the copies of charge sheet were furnished to the advocate for accused as per Section 207 of Cr.P.C/Section 230 of BNSS, 2023. Therefore, in this regard there is no merit found in the submission made by the learned counsel for petitioners/accused.

29. Trial was conducted as per trial dates on 05.03.2026 and continued on 06.03.2026, 09.03.2026, 10.03.2026, 11.03.2026, 12.03.2026, 13.03.2026, 16.03.2026, 17.03.2026 and 18.03.2026.

30. Upon considering the events that occurred on these dates of trial, it is found that there was non-cooperation by the advocate for the accused during trial. It is the mandated by the Hon'ble Supreme Court that the

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NC: 2026:KHC-D:5639 HC-KAR witnesses shall not be exhausted by being repeatedly called to appear before the Court and that soon after the completion of examination-in-chief of witnesses, the advocate for the accused shall cross-examine the witnesses. But against this principle, the advocate for the accused prayed time for cross-examination of PW.2 and it was refused by the learned Sessions Judge, hence recorded cross-examination by taking it as 'nil'. Though on 06.03.2026 cross-examination of PW.2 is taken as 'nil', the witness was recalled and he was cross-examined.

31. On 09.03.2026 a new advocate by name, Sri. S. Rangaswamy, filed vakalath for accused Nos.1 to 9 and 12 along with previous advocate. Therefore, the previous advocate continued on record and Sri. S. Rangaswamy has also entered appearance on behalf of accused Nos.1 to 9 and 12 along with the previous advocate on record. It is recorded in the order sheet dated 09.03.2026 that CW.9 was fully examined-in-chief as PW.3 by the learned public prosecutor and was also cross-examined by advocate for

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NC: 2026:KHC-D:5639 HC-KAR accused Nos.1 to 9 and 12. Likewise, C.W.13 was examined and cross-examined during the proceedings. On 10.03.2026, it is recorded in the order sheet that C.W.13 is facing threat from accused No.1. Therefore, it is recorded that there is a threat to the prosecution witnesses.

32. Further, upon considering the proceedings recorded in the order sheets dated 11.03.2026 and 12.03.2026, the charge sheet witnesses were examined by the prosecution and cross-examined by the advocate for the accused. On the very next date of hearing, i.e., on 13.03.2026, the learned Sessions Judge has noted the judgment of the Hon'ble Supreme Court in Central Bureau of Investigation vs. Mir Usman @ Ara @ Mir Usman Ali¹, and the Circular No. MISC No. HCLC 32/25, dated 22.11.2025 issued by this Court, directing the Sessions Court to conduct trial on day-to-day basis and to expedite trial. Therefore, the advocates for the accused are well aware of the principle of law laid down by the Hon'ble 2025 INSC 1155

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NC: 2026:KHC-D:5639 HC-KAR Supreme Court that trial shall be conducted on day-to-day basis and as expeditiously as possible.

33. Upon considering the chronological sequence of events as recorded in the order sheets for each day of trial, no procedural lapse is found to have been committed in conducting trial and trial has been conducted by the learned Sessions Judge in accordance with the principle of law laid down by the Hon'ble Supreme Court and therefore, no fault can be found with the same. It is found that the accused have engaged advocate from beginning of the case and on 09.03.2026, the accused have engaged an advocate Sri. S. Rangaswamy (Sri. SRS advocate) along with previous advocate. Therefore, the accused were well aware of trial procedures as recorded in the order sheets in the Sessions case. Hence, no prejudice is caused to the accused.

34. The accused have also filed an application for transferring them from Huvinahadagali Jail to Ballari Jail and this requisition was rejected by the learned Sessions

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NC: 2026:KHC-D:5639 HC-KAR Judge. In the order sheet, it is shown that on 16.03.2026, the advocate for accused Nos.1 to 9 and 12 cross-examined PW.9 and PW.10. On the same day, the advocate for accused Nos.1 to 9 and 12 filed an application under Section 346 of BNSS, 2023, for adjournment of case on the ground that he needs to come from Ballari to attend the case and therefore it is causing inconvenience to him, but this request was rejected.

35. It is worthwhile to mention here that the directions given by the Hon'ble Supreme Court in *Mir Usman @ Ara @ Mir Usman Ali* (stated supra) at Clause No.[4] in paragraph No.37 and also at Clause No.[4] in the Circular dated 22.11.2025 issued by this Court in MISC No. HCLC 32/25, which reads as follows:

"[4] The Court should not grant the adjournment to suit the convenience of the advocate concerned except on very exceptional grounds like bereavement in the family and similar exceptional reasons duly supported by memo. Be it noted that the said inconvenience of an

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NC: 2026:KHC-D:5639 HC-KAR advocate is not a "Special Reason" for the purpose of bypassing the immunity of Section 309 of the Cr.P.C."

36. Therefore, merely because the cross-examination sought by the advocate during trial was rejected, that cannot be a ground to say that the accused are prejudiced. Sri. S. Rangaswamy, Advocate, entered appearance on 09.03.2026; hence, it is presumed that he was aware of trial dates and accepted the vakalath accordingly. Therefore, the advocate shall not raise such a ground for seeking adjournments.

37. Further, the advocate for accused Nos.1 to 9 and 12 has submitted that he needs time to challenge the order passed on the application filed by accused No.10 and the same is rightly rejected by the Sessions Court. The advocate appearing for accused Nos.1 to 9 and 12 has no locus standi to

challenge the order on the discharge application filed by accused No.10 and this attempt is nothing but an effort to protract trial, which is contrary to

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NC: 2026:KHC-D:5639 HC-KAR the principle of law laid down by the Hon'ble Supreme Court in Mir Usman @ Ara @ Mir Usman Ali (stated supra).

38. Further in the order sheet dated 16.03.2026 the learned Sessions Judge has dismissed the application filed under Section 346 of BNSS, 2023, and also recorded that the accused persons, who are appearing before the Court through video conference are continuously disturbing the Court proceedings though they are represented by their advocates. Therefore, the accused are trying to protract trial by one or the other way as discussed above.

39. On 17.03.2026, witnesses were examined by the prosecution, but advocates for the accused sought time for cross-examination and the same was rejected. Therefore, this shows non-cooperation on the part of the accused, acting through their advocates, with an apparent intention to protract trial. Consequently, on 27.03.2026, having no other option and in compliance with the directions of the Hon'ble Supreme Court in Mir Usman @ Ara @ Mir Usman

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NC: 2026:KHC-D:5639 HC-KAR Ali (stated supra), the Sessions Court has engaged an Advocate as Amicus Curiae from the District Legal Aid Defence Council² and continued trial.

40. Thereafter trial continued on 18.03.2026, 23.03.2026, 24.03.2026, 25.03.2026 and 26.03.2026. On all these dates, the advocate for accused Nos.1 to 9 and 12 did not cross-examine the prosecution witnesses. The advocate for accused Nos.1 to 9 and 12 was continuously pressing for adjournments for the purpose of cross-examining the witnesses, as recorded in the order sheets and such requests were rejected by the learned Sessions Judge by assigning reasons in line with the directions of the Hon'ble Supreme Court.

41. It is worthwhile to place reliance on the judgment of the Hon'ble Supreme Court in Mir Usman @ Ara @ Mir Usman Ali (stated supra), wherein guidelines Hereinafter referred to as the 'DLADC'

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NC: 2026:KHC-D:5639 HC-KAR have been issued in paragraph No.37, which reads as follows:

37. The Chief Justices of the High Courts may direct their administrative side to issue a circular to the respective district judiciaries stating as under:

[1] The proceedings in every inquiry or trial shall be held expeditiously.

[2] When the stage of examination of witnesses starts such examination shall be continued from day-to-day until all the witnesses in the attendance have been examined except for special reasons to be recorded in writing.

[3] When the witnesses are in attendance before the Court no adjournment or postponement shall be granted without examining them, except for special reasons to be recorded in writing.

[4] The Court should not grant the adjournment to suit the convenience of the advocate concerned except on very exceptional grounds like bereavement in the family and similar exceptional reasons duly supported by memo. Be it noted that the said inconvenience of an advocate is not a "Special Reason" for the purpose of bypassing the immunity of Section 309 of the Cr.P.C.

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NC: 2026:KHC-D:5639 HC-KAR [5] In case of non-cooperation of accused or his counsel, the following shall be kept in mind:

a. In case of non-cooperation of the counsel, the Court shall satisfy itself whether the non-cooperation is in active collusion with the accused to delay the trial. If it is so satisfied for reasons to be recorded in writing, it may, if the accused is on bail, put the accused on notice to show cause why the bail cannot be cancelled.

b. In cases where the accused is not in collusion with lawyer and it is the lawyer who is not cooperating with the trial, the Court may for reason to be recorded, appoint an amicus curiae for the accused and fix a date for proceeding with cross-examination/trial.

c. The Court may also in appropriate cases impose cost on the accused commensurate with the loss suffered by the witness including the expenses to attend the court.

d. In case when the accused is absent and the witness is present for examination, in that case the Court can cancel the bail of accused if he is on bail. (Unless an application is made on his behalf seeking permission for his counsel to proceed to examine the witness present even in

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NC: 2026:KHC-D:5639 HC-KAR his absence, provided the accused gives an undertaking in writing that, he would not dispute, his identity as a particular accused in the case.) [6] The Presiding Officer of each Court may evolve the system for framing a schedule of constructive working days for examination of witnesses in each case, well in advance, after ascertaining the convenience of counsel on both sides.

[7] The summons or process could be handed over to the Public Prosecutor in-charge of the case to cause them to be served on the witnesses, as per schedule fixed by the Court."

42. Further, the Hon'ble Supreme Court in Akil Alias Javed vs. State (NCT of Delhi)³, at paragraph Nos.34, 35 and 36, has held as under:

34. Under Section 309 CrPC falling under Chapter XXIV it has been specifically stipulated as under:

"309. Power to postpone or adjourn proceedings.--(1) In every inquiry or trial, the proceedings shall be held as expeditiously as possible, (2013) 7 Supreme Court Cases 125

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NC: 2026:KHC-D:5639 HC-KAR and in particular, when the examination of witnesses has once begun, the same shall be continued from day to day until all the witnesses in attendance have been examined, unless the court finds the adjournment of the same beyond the following day to be necessary for reasons to be recorded:

Provided that when the inquiry or trial relates to an offence under Sections 376 to 376-D of the Indian Penal Code (45 of 1860), the inquiry or trial shall, as far as possible, be completed within a period of two months from the date of commencement of the examination of witnesses.

(2) If the court, after taking cognizance of an offence, or commencement of trial, finds it necessary or advisable to postpone the commencement of, or adjourn, any inquiry or trial, it may, from time to time, for reasons to be recorded, postpone or adjourn the same on such terms as it thinks fit, for such time as it considers reasonable, and may by a warrant remand the accused if in custody:

Provided that no Magistrate shall remand an accused person to custody under this section for a term exceeding fifteen days at a time:

Provided further that when witnesses are in attendance, no adjournment or postponement shall be

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NC: 2026:KHC-D:5639 HC-KAR granted, without examining them, except for special reasons to be recorded in writing:

Provided also that no adjournment shall be granted for the purpose only of enabling the accused person to show cause against the sentence proposed to be imposed on him:

35. In this context it will also be worthwhile to refer to a circular issued by the High Court of Delhi in Circular No. 1/87 dated 12-1-1987. Clause 24-A of the said circular reads as under:

"24-A. A disturbing trend of trial of sessions cases being adjourned, in some cases to suit convenience of counsel and in some others because the prosecution is not fully ready, has come to the notice of the High Court. Such adjournments delay disposal of sessions cases.

The High Court considers it necessary to draw the attention of all the Sessions Judges and Assistant Sessions Judges once again to the following provisions of the Code of Criminal Procedure, 1973, Criminal Rules of Practice, Kerala, 1982 and Circulars and instructions on the list system issued earlier, in order to ensure the speedy disposal of sessions cases.

1. (a) In every enquiry or trial, the proceedings shall be held as expeditiously as possible, and, in particular,

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NC: 2026:KHC-D:5639 HC-KAR when the examination of witnesses has once begun, the same shall be continued from day to day until all the witnesses in attendance have been examined, unless the court finds the adjournment of the same beyond the following day to be necessary for reasons to be recorded. [Section 309(1) CrPC]

(b) After the commencement of the trial, if the court finds it necessary or advisable to postpone the commencement of, or adjourn, any inquiry or trial, it may, from time to time, for reasons to be recorded postpone or adjourn the same on such terms as it thinks fit, for such time as it considers reasonable. If witnesses are in attendance no adjournment or postponement shall be granted, without examining them, except for special reasons to be recorded, in writing. [Section 309(2) CrPC]

2. Whenever more than three months have elapsed between the date of apprehension of the accused and the close of the trial in the Court of Session, an explanation of the cause of delay, (in whatever court it may have occurred) shall be furnished, while transmitting the copy of the judgment. (Rule 147, Criminal Rules of Practice)

3. Sessions cases should be disposed of within six weeks of their institution, the date of commitment being taken as the date of institution in sessions cases. Cases pending for longer periods should be regarded as old cases in respect of which explanations

should be

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NC: 2026:KHC-D:5639 HC-KAR furnished in the calendar statements and in the periodical returns. (High Court Circular No. 25/61 dated 26-10- 1961)

4. Sessions cases should be given precedence over all other work and no other work should be taken up on sessions days until the sessions work for the day is completed. A sessions case once posted should not be postponed unless that is unavoidable, and once the trial has begun, it should proceed continuously from day to day till it is completed. If for any reason, a case has to be adjourned or postponed, intimation should be given forthwith to both sides and immediate steps be taken to stop the witnesses and secure their presence on the adjourned date.

On receipt of the order of commitment the case should be posted for trial to as early a date as possible, sufficient time, say three weeks, being allowed for securing the witnesses. Ordinarily it should be possible to post two sessions cases a week, the first on Monday and the second on Thursday but sufficient time should be allowed for each case so that one case does not telescope into the next. Every endeavour should be made to avoid telescoping and for this, if necessary, the court should commence sitting earlier and continue sitting later than the normal hours. Judgment in the case begun on Monday should ordinarily be pronounced in the course of

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NC: 2026:KHC-D:5639 HC-KAR the week and that begun on Thursday the following Monday. (Instructions on the list system contained in the OM dated 8-3-1984) All the Sessions Judges and the Assistant Sessions Judges are directed to adhere strictly to the above provisions and instructions while granting adjournments in sessions cases."

36. In this context some of the decisions which have specifically dealt with such a situation which has caused serious inroad into the criminal jurisprudence can also be referred to. In one of the earliest cases in *Badri Prasad v. Emperor* (1912) 13 Cri LJ 861 (All), a Division Bench of the Allahabad High Court has stated the legal position as under: (Cri LJ p. 862) "... Moreover, we wish to point out that it is most inexpedient for a sessions trial to be adjourned. The intention of the Code is that a trial before a Court of Session should proceed and be dealt with continuously from its inception to its finish. Occasions may arise when it is necessary to grant adjournments, but such adjournments should be granted only on the strongest possible ground and for the shortest possible period."

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NC: 2026:KHC-D:5639 HC-KAR

43. Further, the Hon'ble Supreme in State of U.P. vs. Shambhu Nath Singh and Others⁴, at paragraph Nos.10 to 14, has held as under:

Section 309 of the Code of Criminal Procedure (for short "the Code") is the only provision which confers power on the trial court for granting adjournments in criminal proceedings. The conditions laid down by the legislature for granting such adjournments have been clearly incorporated in the section. It reads thus:

"309. Power to postpone or adjourn proceedings.- (1) In every inquiry or trial, the proceedings shall be held as expeditiously as possible, and in particular, when the examination of witnesses has once begun, the same shall be continued from day to day until all the witnesses in attendance have been examined, unless the Court finds the adjournment of the same beyond the following day to be necessary for reasons to be recorded.

(2) If the Court, after taking cognizance of an offence, or commencement of trial, finds it necessary or advisable to postpone the commencement of, or adjourn, any inquiry or trial, it may, from time to time, for reasons to be recorded, postpone or adjourn the same on such terms as it thinks fit, for such time as it considers (2001) 4 Supreme Court Cases 667

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NC: 2026:KHC-D:5639 HC-KAR reasonable, and may by a warrant remand the accused if in custody:

Provided that no Magistrate shall remand an accused person to custody under this section for a term exceeding fifteen days at a time.

Provided further that when witnesses are in attendance, no adjournment or postponement shall be granted without examining them, except for special reasons to be recorded in writing:

Provided also that no adjournment shall be granted for the purpose only of enabling the accused person to show cause against the sentence proposed to be imposed on him."

11. The first sub-section mandates on the trial courts that the proceedings shall be held expeditiously but the words "as expeditiously as possible" have provided some play at the joints and it is through such play that delay often creeps in the trials. Even so, the next limb of the sub-section sounded for a more vigorous stance to be adopted by the court at a further advanced stage of the trial. That stage is when examination of witnesses begin.

The legislature which diluted the vigour of the mandate contained in the initial limb of the sub-section by using the words "as expeditiously as possible" has chosen to make the requirement for the next stage (when

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NC: 2026:KHC-D:5639 HC-KAR examination of the witnesses has started) to be quite stern. Once the case reaches that stage the statutory command is that such examination "shall be continued from day to day until all the witnesses in attendance have been examined". The solitary exception to the said stringent rule is, if the court finds that adjournment "beyond the following day to be necessary" the same can be granted for which a condition is imposed on the court that reasons for the same should be recorded. Even this dilution has been taken away when witnesses are in attendance before the Court. In such situation the court is not given any power to adjourn the case except in the extreme contingency for which the second proviso to sub-section (2) has imposed another condition, "provided further that when witnesses are in attendance, no adjournment or postponement shall be granted without examining them, except for special reasons to be recorded in writing."

(emphasis supplied)

12. Thus, the legal position is that once examination of witnesses started the court has to continue the trial from day to day until all witnesses in attendance have been examined (except those whom the party has given up). The court has to record reasons for deviating from the said course. Even that is forbidden when witnesses are present in court, as the requirement then is that the

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NC: 2026:KHC-D:5639 HC-KAR court has to examine them. Only if there are "special reasons", which reasons should find a place in the order for adjournment, that alone can confer jurisdiction on the court to adjourn the case without examination of witnesses who are present in court.

13. Now, we are distressed to note that it is almost a common practice and regular occurrence that trial courts flout the said command with immunity. Even when witnesses are present cases are adjourned on far less serious reasons or even on flippant grounds. Adjournments are granted even in such situations on the mere asking for it. Quite often such adjournments are granted to suit the convenience of the advocate concerned. We make it clear that the legislature has frowned at granting adjournments on that ground. At any rate inconvenience of an advocate is not a "special reason" for bypassing the mandate of Section 309 of the Code.

14. If any court finds that the day-to day examination of witnesses mandated by the legislature cannot be complied with due to the non-cooperation of the accused or his counsel the court can adopt any of the measures indicated in the sub-section i.e. remanding the accused to custody or imposing cost on the party who wants such adjournments (the cost must be commensurate with the loss suffered by the witnesses, including the expenses to

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NC: 2026:KHC-D:5639 HC-KAR attend the court). Another option is, when the accused is absent and the witness is present to be examined, the court can cancel his bail, if he is on bail (unless an application is made on his behalf seeking permission for his counsel to proceed to examine the witnesses present even in his absence provided the accused gives an undertaking in writing that he would not dispute his identity as the particular accused in the case.)

44. Therefore, upon considering the entire order sheets, and more generally the order sheet dated 27.03.2026, the Court has found that there is non- cooperation by the advocate for accused Nos.1 to 9 and 12, in collusion with accused Nos.1 to 9 and 12, thereby protracting trial, therefore, as per the directions of the Hon'ble Supreme Court in *Mir Usman @ Ara @ Mir Usman Ali* (stated supra), an advocate from the DLADC, by name Sri. Manjunath Allalli, is appointed. In this regard, the learned counsel for the petitioners/accused submitted that appointing the advocate Sri. Manjunath Allalli is not the choice of the accused and therefore constitutes a violation of the fundamental rights of the petitioners.

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NC: 2026:KHC-D:5639 HC-KAR

45. Upon considering the entire order sheet as produced by both sides, it is found that there was continuous interference in trial by making one or another attempt and also that on 23.07.2026, a high drama was created, as reflected in the order sheet, wherein an event occurred involving threats made to the Sessions Judge by the advocates appearing for the accused. Therefore, the learned Sessions Judge, without any alternative way, and in accordance with the directions of the Hon'ble Supreme Court as above stated, has appointed an advocate as Amicus Curiae from the DLADC system.

46. It is worthwhile to note here that the mechanism of appointing an advocate from DLADC is evolved by the National Legal Services Authority and implemented by the Karnataka State Legal Services Authority throughout the State of Karnataka and in other States by their respective State Legal Services Authorities. In order to achieve the object and principle of law laid down by the Hon'ble Supreme Court, the procedure followed by the learned

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NC: 2026:KHC-D:5639 HC-KAR Sessions Judge is found to be completely in accordance with law and cannot be found fault with, particularly in light of the events recorded in the order sheets during the course of trial.

47. On the very same day, the learned Amicus Curiae has cross-examined the witnesses, who had already been examined-in-chief by the prosecution. It is recorded that PW.35 is fully cross-examined by the DLADC for accused Nos.1 to 9 and 12 and the advocate for accused No.10

submitted that he will adopt the cross-examination of accused Nos.1 to 9 and 12. The other witnesses were also cross-examined. The prosecution has examined all witnesses and the DLADC had cross-examined the witnesses on behalf of accused Nos.1 to 9 and 12. Thus, the procedure adopted by the learned Sessions Judge is completely in accordance with the dictum of the Hon'ble Supreme Court.

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NC: 2026:KHC-D:5639 HC-KAR

48. It is worthwhile to extract the guidelines issued by the Hon'ble Supreme Court in *Mir Usman @ Ara @ Mir Usman Ali* (stated supra), at Sub-clauses (a) and (b) of Clause-V in paragraph No.37:

"a. In case of non-cooperation of the counsel, the Court shall satisfy itself whether the noncooperation is in active collusion with the accused to delay the trial. If it is so satisfied for reasons to be recorded in writing, it may, if the accused is on bail, put the accused on notice to show cause why the bail cannot be cancelled.

b. In cases where the accused is not in collusion with lawyer and it is the lawyer who is not cooperating with the trial, the Court may for reason to be recorded, appoint an *amicus curiae* for the accused and fix a date for proceeding with cross-examination/trial."

49. It is worthwhile to make some observations regarding the conduct and the manner in which the advocate for accused Nos.1 to 9 and 12 appearing in the Sessions case, as recorded in the order sheet dated 27.03.2026. It is recorded that the advocate for accused Nos.1 to 9 and 12 has threatened the witnesses by showing

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NC: 2026:KHC-D:5639 HC-KAR his finger. Though the advocate for accused Nos.1 to 9 and 12 has later apologized, it was nevertheless a deliberate attempt to intimidate the witnesses appearing to give evidence on behalf of the prosecution. This conduct of the advocate appearing for accused Nos.1 to 9 and 12 amounts to interference with the administration of justice as the witnesses are the eyes and ears of the Court.

50. Further, the learned Sessions Judge has recorded that during the course of evidence of PW.4, PW.4 has submitted that, he is facing threat in this case and not to depose against accused No.1 and also there is an attempt to get involving himself in the POCSO case. Therefore, this is the effort made by accused No.1 to threaten the witnesses. Therefore, upon finding that there is non-cooperation by accused Nos.1 to 9 and 12 as well as advocate for accused Nos.1 to 9 and 12 in the Sessions Court, inevitably the learned Sessions Judge has appointed DLADC Advocate as *Amicus Curie* for accused Nos.1 to 9 and 12 for further trial.

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NC: 2026:KHC-D:5639 HC-KAR

51. It is recorded in the order sheet that the witnesses who had not been cross-examined by the advocate for accused Nos.1 to 9 and 12 have been cross-examined by the learned Amicus Curiae appointed through the DLADC. It is worthwhile to mention here that, as per the appearance recorded on 27.03.2026 and as noted earlier on 09.03.2026, one Sri. S. Rangaswamy, Advocate, stated to be a Member of the Bar Association, Ballari, had entered appearance by filing vakalath on behalf of accused Nos.1 to 9 and 12, along with the previous advocate.

52. Upon considering the order sheet dated 27.03.2026, at about 4.00 p.m. as recorded during recording of evidence, previous advocate, Sri.S.Rangaswamy for accused Nos.1 to 9 and 12 (learned advocate for the petitioners and learned AAG for respondent No.2 submitted that the name 'SRS' means Sri. S. Rangaswamy), by bringing 8 to 10 advocates from Ballari made interference during recording of the evidence and stood staring in the Court hall for about ten minutes with

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NC: 2026:KHC-D:5639 HC-KAR crossed arms. Also, when the Sessions Court informed the advocate, Sri. S. Rangaswamy, that the Court has appointed Amicus Curiae in view of the principle of law laid down by the Hon'ble Supreme Court, the said advocate said he does not care about the direction of the Hon'ble Supreme Court and the Circular issued by this Court. It is worthwhile to extract the observations made by the learned Sessions Judge in the order sheet dated 27.03.2026:

"At about 04.00, during recording of evidence, previous counsel Sri. SRS Advocate, for A1 to 9 and 12, by bringing 8 to 10 advocates from Bellari made interference during the recording of the evidence and stood staring at the court for about 10 minutes with crossed arms. When this court has informed the counsel that it has appointed Amicus Curie in view of directions of the Honorable Supreme Court of India in the case of the Central Bureau of Investigation Vs. Mir Usman @ Ara @ Mir Usman Ali, 2025 INSC 1155 and the Circular No.MISC No. HCLC 32/25, dated 22.11.2025, he and 8 to 10 advocates accompanied by him submits that they don't care about direction of the Supreme Court and circular of Karnataka in this area. SRS

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NC: 2026:KHC-D:5639 HC-KAR advocate files memo of appearance for Accused No.1 to 9 and Vakalat for Accused No.12."

53. This Sessions case is a clear example of how the accused are attempting to make a mockery of justice. The above observations made by the learned Sessions Judge and recorded in the order sheets clearly show that the Advocate, Sri. S. Rangaswamy, has colluded with accused Nos.1 to 9 and 12 personally in order to ensure that trial does not proceed continuously, thereby causing deliberate

interference and interruption. The Advocate, Sri. S. Rangaswamy, in the Sessions case appearing for accused Nos.1 to 9 and 12 has not conducted the case in a professional manner; though he accepted the brief and filed vakalath but he has acted in a manner detrimental to the judiciary, which is nothing but threatening the judicial system. Further, the conduct of the advocate, Sri.S. Rangaswamy, as recorded in the order sheets, in obstructing the proceedings, amounts to criminal contempt of Court. Moreover, the conduct of Sri. S. Rangaswamy also

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NC: 2026:KHC-D:5639 HC-KAR amounts to obstructing a public servant in the discharge of public duties and to intentional insult and interruption of a public servant sitting in a judicial proceeding, thereby attracting offences under Sections 186 and 228 of the Indian Penal Code, 18605 (Sections 221 and 267 of the BNS, 2023).

54. Now let me make observations on the manner in which the learned counsel Sri S. Rangaswamy, has argued on the case is to be observed and considered here.

55. As observed above, and as recorded by the learned Sessions Judge in the proceedings of the Sessions Case, Sri S. Rangaswamy, Advocate, virtually threatened the Sessions Judge by raising his hands and pointing his finger at the Court, and by bringing 8 to 10 advocates with him. This conduct amounts to nothing but an attempt to threaten the Court and scuttle the judicial process. It cannot be said that these were stray incidents; rather, the Hereinafter referred to as the 'IPC'

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NC: 2026:KHC-D:5639 HC-KAR advocate, Sri S. Rangaswamy, consciously engaged in all these acts. Therefore, he is liable to be subjected to appropriate action.

56. The Hon'ble Supreme Court in the case of CHETAK CONSTRUCTION LTD. vs OM PRAKASH AND OTHERS⁶, reminds the Lawyers and Judges of their duties and functions and towards dispensation of justice. The words expressed by Hon'ble Supreme Court in the above said case at paragraphs 16 and 17 should remind all of us the duties of Lawyers' and the Judges' as to how they are important in the voyage of justice. At paragraphs 16 and 17 their Lordships were pleased to observe as follows:

"16. Indeed, no lawyer or litigant can be permitted to browbeat the court or malign the presiding officer with a view to get a favourable order. Judges shall not be able to perform their duties freely and fairly if such activities were permitted and in the result administration of justice would become a casualty and rule of law would receive a setback. The Judges are obliged (1998) 4 SCC 577

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NC: 2026:KHC-D:5639 HC-KAR to decide cases impartially and without any fear or favour. Lawyers and litigants cannot be allowed to "terrorize" or "intimidate" Judges with a view to "secure" orders which they want. This is basic and fundamental and no civilised system of administration of justice can permit it. We certainly, cannot approve of any attempt on the part of any litigant to go "forum-shopping". A litigant cannot be permitted "choice" of the "forum" and every attempt at "forum-shopping"

must be crushed with a heavy hand.

17. At the same time, it is of utmost importance to remember that Judges must act as impartial referees and decide cases objectively, uninfluenced by any personal bias or prejudice. A Judge should not allow his judicial position to be compromised at any cost. This is essential for maintaining the integrity of the institution and public confidence in it. The credibility of this institution rests on the fairness and impartiality of the Judges at all levels. It is the principle of highest importance for the proper administration of justice that judicial powers must be exercised impartially and within the bounds of law. Public confidence in the judiciary rests on legitimacy of judicial process. Sources of legitimacy are in the

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NC: 2026:KHC-D:5639 HC-KAR impersonal application by the Judge of recognised objective principles which owe their existence to a system as distinguished from subjective moods, predilections, emotions and prejudices. Judges must always ensure that they do not allow the credibility of the institution to be eroded. We must always remember that justice must not only be done but it must also be seen to be done."

57. The Hon'ble Supreme Court in the case of RAMESHWAR PRASAD GOYAL, ADVOCATE, IN RE⁷ has observed that an Advocate being an Officer of the Court has a duty to ensure smooth functioning of the Court and also Lawyers are equal partners with the Judges in the administration of justice.

58. The Lawyers play an important and pivotal role in the administration of justice. The profession itself requires the safeguarding of high moral standards. Since the main job of lawyer is to assist the Court in dispensation of justice, therefore, the Advocate cannot behave with the Court in a disrespectful manner. But, in the Sessions Case, AIR 2014 SC 850

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NC: 2026:KHC-D:5639 HC-KAR the way in which Sri S. Rangaswamy, advocate behavior is amounting to derogatory to dignity and decorum of the Court.

59. The Hon'ble Supreme Court in the case of MAHABIR PRASAD SINGH v. M/S. JACKS AVIATION PVT. LTD.⁸ has observed that the judicial function cannot and should not be permitted

to be stoneword by browbeating or bullying methodology either it is by litigants or by counsel. Therefore, this Court is compelled to make the above observations what it transpired in the Court while trial in Sessions case is going.

60. A client engages a lawyer for addressing his grievances. The lawyer is not an agent of his client, but he is dignified, responsible spokesman. The lawyer cannot wear shoes of his client. The Court cannot satisfy both parties; one party obviously being dissatisfied and the Advocate - Sri S. Rangaswamy could not have stepped into AIR 1999 SC 287

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NC: 2026:KHC-D:5639 HC-KAR the shoes of the client to express his dissatisfaction as if it is a personal case and ought not to have addressed the Court in the conduct disrespecting the Court and harming dignity and decorum of the Court. What transpired in Sessions Court, this Court observed the learned Advocate - Sri.S.Rangswami has exceeded his limits while conducting the Sessions case.

61. Therefore, upon considering the entire case on record and the material produced before this Court at this stage, there is no lapse of procedure committed by the learned Sessions Judge for the reasons discussed above and no prejudice is caused to the accused in conducting trial. The accused and advocate, Sri. S. Rangaswamy, have made of possible attempts to protract trial and are causing interruption repeatedly as observed above. Therefore, there is no merit found in this petition.

62. Further, it is observed that on the submission made by the learned counsel for the petitioners that the

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NC: 2026:KHC-D:5639 HC-KAR learned Sessions Judge has taken this case on top priority, though there are other 32 custody cases pending before the Court of I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, and that taking only this case on top priority shows that the learned Sessions Judge is acting with vengeance against the accused. This submission cannot be accepted and is hereby rejected for the reason that just because the learned Sessions Judge has taken this case on top priority is not the ground to infer that the learned Sessions Judge is prejudiced or has any vengeance. There may be 32 other custody cases, but there is no rule that cases must be taken up one after another for trial; the criterion is that Courts shall give priority to custody cases. Therefore, the learned Sessions Judge has given priority to this case for the reason that accused No.1 is facing 16 cases as per the submission made by the learned Additional Advocate General and keeping in mind the sensitivity involved in the case and also considering the submission that accused No.1 is facing trial in 16 cases, among which

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NC: 2026:KHC-D:5639 HC-KAR two are for offences of murder, and that after obtaining anticipatory bail from this Court in CrI.P.No.100511/2024 dated 19.04.2024, accused No.1 is alleged

to have committed the murder of the deceased in the present case as the deceased is eye witness in earlier murder case in which accused No.1 is also accused. The learned Additional Advocate General has furnished a copy of the order passed in Crl.P.No.100511/2024 between Ramali @ Ramulu @ NTR and Others vs. State of Karnataka, in which accused No.1 is arrayed as petitioner No.5. Therefore, after receiving the benefit of anticipatory bail, the allegation is that accused No.1 has committed murder of the deceased in the present case. This is the allegation made by the prosecution. Therefore, considering these factors, the learned Sessions Judge has given priority to the present case, which cannot be found fault with and therefore, the conduct of trial by the learned Sessions Judge is completely in consonance with the principle of law laid down by the Hon'ble Supreme Court and mandatory provision under

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NC: 2026:KHC-D:5639 HC-KAR Section 309 of in the Code of Criminal Procedure, 1973, and Bharatiya Nagarika Suraksha Sanhita, 2023. The learned Sessions Judge has recorded the conduct and misbehaviour of the advocate Sri. S. Rangaswamy in the order sheet as stated above which is recorded in the order sheet dated 27.03.2026. This conduct of the advocate in the deposition of PW-3 recorded on 09.03.2026.

63. On 28.03.2026, the learned Sessions Judge has recorded the conduct and misbehaviour of the advocate Sri. S. Rangaswamy/SRS, and observed that the said advocate had brought 8 to 10 advocates from Ballari, stood staring at the Court for almost 15 minutes, hurled abuses and interrupted the Court proceedings during recording of evidence of witness, is contrary to with the principles of law laid down by the Hon'ble Supreme Court and contrary to the mandate under the Code of Criminal Procedure, 1973, and the Bharatiya Nagarika Suraksha Sanhita, 2023.

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64. It is worthwhile to extract the observations recorded in the order sheet dated 28.03.2026, which reads as follows:

"Accused No.12 is present and submits that, her previous counsel Sri Rangaswamy/SRS, Advocate by brining 8-10 Advocates from Ballari, stood staring to the Court for almost 15 minutes, hurled abuses and interrupted the Court proceedings during recording of the evidence of witness. He has shown disrespect to the directions of the Honorable Supreme Court of India and the circular of the Honorable High Court of Karnataka. She has regret for the act of her previous counsel. He ought not to have misbehaved with the Court. She has also scolded the said Advocate and asked him to return the file and the fees. She is happy with present DLADC and she is providing instructions to the DLADC to conduct her case and case of her husband/Accused No.1. She never gave shelter to any Accused persons. She and her husband are falsely implicated in this case. Hence, prayed to take up the

matter on day-to-day basis and dispose the same as she is having her regular LLB classes."

65. Also, during the progress of the trial before the Sessions Court in the Sessions case, some henchmen of

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NC: 2026:KHC-D:5639 HC-KAR Accused No. 1, namely Parashuram, Anji, Shrikant, and Naveen, threatened the charge sheet witness, namely Ramesh alias Konda Rama, that if evidence is given in the case, he would be murdered, and thereby criminally intimidated and threatened the life of the witness. For which the said witness, Ramesh alias Konda Rama, has lodged a complaint before the Police, which has been registered as FIR in Crime No. 56/2026 of Gangavathi Town Police Station and produced along with the affidavit by the de facto complainant. Therefore, as observed above, there is a constant threat to the witnesses. Witnesses are the eyes and ears of the Court. Therefore, it is necessary for the State to give utmost importance to the protection of witnesses.

66. This Court in Crl.P. No. 201407/2023 dated 29.01.2024 in the case of Ningappa and another vs. The State of Karnataka has observed regarding protection of witnesses in paragraphs Nos.41, 42, and 43 as follows:

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NC: 2026:KHC-D:5639 HC-KAR "41. XXXX.XXXX.XXXX..... The witnesses are eyes and ears of justice. In this regard, the Hon'ble Supreme Court has issued guidelines regarding witness protection.

It is a common experience that in some cases the witnesses are receiving threats from the goons compelling the witness not to give evidence or coercion, influencing the mind illegally, which affects free and fair trial. Ultimately, this threat to the witnesses is affecting administration of justice. Unless protection is given to the witnesses there cannot be fair trial. The fair trial is a fundamental right as enshrined in Article 21 of the Constitution of India.

"WITNESSES IN MODERN TIMES In the most universal connotation, the term "witness" represents someone, who happens to be in attendance at some happening, i.e. locus delicti, and possesses vital information, respectively, being an eye witness ab initio. In other words, a witness is that dramatis personae whose attendance in re is indispensable to establish the happening. Jeremy Bentham defines a witness as;

"those who are accustomed to reflect on ideas, know well how much idea depend on words. According to him, the word witness is employed to mark two different individuals or the same individual in two different situations; the one that of perceiving witness, that is of one who has seen or heard or learned by his senses the fact concurring which he can give

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NC: 2026:KHC-D:5639 HC-KAR information when examined and the other that of a deposing witness, who states in a court of justice the information which he has acquired. The term witness then may be applied to the parties themselves who have an interest in the case as well as to all those whom it is commonly employed to designate."

DEFINITION OF PROTECTION The term "protection", in common parlance, implies either an attempt of guarding or an effort to provide security. In law, the protection refers to the safeguarding of the interests of the vulnerable. As far as witnesses are concerned, there is no definition of the word protection in India. But the Indian legal system, as it appears, hitherto does not pay attention to the vulnerability of witnesses. In few statutes like the Terrorist and Disruptive Activities (Prevention) Act, 1987 (TADA), Prevention of Terrorism Act (POTA) and Juvenile Justice Act, there are provisions inserted for witness identity protection. The Act empowered the concerned judicial officer to take in-camera proceedings and to protect the identity and address of the witnesses. The Central Government may transfer any case pending before a designated court in that state to any other state if it thinks that conducting such a trial may result in breach of peace in that area or a grave risk to the safety of the accused, witnesses, the public prosecutor and the judge of the designated court or any of them. This decision of the Central Government, however, must be taken in concurrence of the Chief Justice of India on a motion moved on that behalf by the Attorney General. These provisions aside, there is a dearth of protective measures that could be used

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NC: 2026:KHC-D:5639 HC-KAR for the benefit of the witnesses in criminal trials. **SIGNIFICANCE OF WITNESSES** In criminal justice structure of any state, the witnesses perform the role of pillars of justice, their presence being the most vital save for plaintiff and accused. By taking pledge in the name of god and deposing fearlessly, he represents the sacrosanct and divine supremacy of truth over evil and justice over misdemeanour. The witness performs an important public duty of assisting the court in deciding on the guilt or otherwise of the accused in the case. He submits himself to cross-examination and cannot refuse to answer questions on the ground of that the answer will incriminate him.

When a witness agrees to testify in the court of law, he undertakes a huge moral and public responsibility on his shoulders. He assists the court in reaching to the appropriate conclusion by undertaking to give the true and correct information about his knowledge in the case. If he does not disclose the full information or the correct information, he is deemed to be a perjurer. If it is proved that he has given false evidence in the court he will have to face a trial under Section 191 of Indian Penal Code, 1860, and, thereafter, may be imprisoned for a term which may extend to seven years and fine under section 193.

Universally, witnesses perform the critical and fundamental duty of making path to push offenders into the realm of justice. The successful conclusion of each stage in criminal proceedings depends on

the co-operation and support of the witnesses. In an adversarial system, the role of witness becomes important

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NC: 2026:KHC-D:5639 HC-KAR particularly at the trial stage, in which the witnesses are subjected to cross examination particularly oral, in public hearing, by the prosecution lawyers to prove the guilt absolutely without any uncertainty and ambiguity. There is no dearth of reasons assigned to valuable role performed by the witness in crime investigations and criminal trials, the most prominent ones being the growth of awareness in victims in respect of criminal procedures and the steep escalation in global terrorism & well thought-out controlled pre-planned crime.

The witnesses play a pivotal role particularly in offences pertaining security of state, drug trafficking, serious offences like murder, rape, robbery, dacoity wherein the imprisonment may extend to death sentence.

The witnesses, most prominently sexual victims/witnesses are genuinely feeble and most vulnerable, especially those who have been targeted by close family members or acquaintances.

The prosecution largely depends upon oral testimony of its witnesses for proving the charges beyond reasonable doubt. It is for this reason that witnesses need special protection in many cases.

WITNESSES IN INDIAN CRIMINAL JUSTICE The Indian Constitution, which bestows upon us a wide range of fundamental rights, surprisingly overlooked witness protection. India does not have any witness protection programme so far, even when many countries, not only developed but also

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NC: 2026:KHC-D:5639 HC-KAR developing (e.g.. Albania), have the same. The necessity of this law is very grave as this would provide courage, safety and authenticity to witnesses as well as restore faith in criminal justice system in India.

The present judicial system has taken witnesses completely for granted. Witnesses are summoned to the court regardless their financial situation and familial and professional constraints. Nowadays, the witnesses are so exposed to threats and have become so helpless that the situation has put the entire criminal justice system in an alarming mode, to press on the urgent requirement of witness protection laws.

In Swaran Singh v. State of Punjab (Swaran Singh, supra note 12 at 678), Justice Wadhwa articulated his concern regarding pathetic status of witnesses in India as follows: "A witness in a criminal trial may come from a far off place to find the case adjourned. He has to come to the court many times and at what cost to his own-self and his family is not difficult to fathom. It has become more or less a fashion to have a criminal case adjourned again and again till the witness tires and he gives up. It is the game of unscrupulous lawyers to get the adjournments for one excuse or the other

till a witness is threatened; he is abducted; he is maimed, he is done away with; or even bribed. There is no protection for him. In adjourning the matter without any valid cause a court unwittingly becomes party to miscarriage of justice. A witness is then not treated with respect in the court. He is pushed out from the crowded courtroom by the peon. He waits for the whole day and then he finds that the matter is adjourned.

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NC: 2026:KHC-D:5639 HC-KAR He has no place to sit and no place even to have a glass of water. And when he does appear in the court, he is subjected to unchecked and prolonged examination and cross-examination and finds himself in a hopeless situation. For all these reasons and others a person abhors becoming a witness. It is the administration of justice that suffers. Then appropriate diet money for a witness is a far cry. Here again the process of harassment starts and he decides not to get the diet money at all. High Courts have to be vigilant in these matters. Proper diet money must be paid immediately to the witness (not only when he is examined but for every adjourned hearing) and even sent to him and he should not be left to be harassed by the subordinate staff. If the criminal justice system is to be put on paper pedestal, the lawyers and the sluggish state machinery. Each trial should be properly monitored. Time has come that all the courts, districts courts, subordinate courts are linked to the High Court with a computer and a proper check is made on the adjournment and recording of evidence. The Bar Council of India and the State Bar Councils must play their part and lend their support to put the criminal system back on its trial. Perjury has also become a way of life in the law courts. A trial judge knows that the witness is telling a lie and is going back on his previous statement, yet he does not wish to punish him or even file a complaint against him. He is required to sign the complaint himself which deters him from filing the complaint. Perhaps law needs amendment to clause (b) of section 340(3) of the Code of Criminal Procedure in this respect as the High Court can direct any officer to file a complaint. To get rid of the evil of perjury, the court should resort to the use of

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NC: 2026:KHC-D:5639 HC-KAR the provisions of law as contained in chapter XXVI of the Code of Criminal Procedure". Some of the problems faced by the witnesses are elaborated as follows:

1. Witnesses residing in remote towns and villages find it extremely difficult to appear in courts as their expenses are not reimbursed.

Many a times, they may be sole bread winners of their families and might incur losses in wages for days together, depending upon adjournments.

2. The treatment which is given to witnesses is not proper and dignified when they come to the court to give evidence. The Malimath Committee opined that the witnesses should be treated with great respect and should be considered as a guest of honour. When a witness comes to the court, there is no one to guide him as to where the court is, where to wait for his turn to come or to give him any other assistance that is required. Similarly, other basic amenities and facilities like drinking water,

food and toilet are non-existent in most courts.

3. Generally, ambience in court and other conditions are not supportive and encouraging for the witnesses who are willing to help the courts in finding the truth based on their oral testimony. In India, there is lot of pressure on courts to dispose of the day-to-day cases. There are lakhs of cases pending in the court and disposal has become very slow. Lack of infrastructural and other facilities, less number of judges, absence of parties in the court on the date of hearing, adjournments sought by the advocates have resulted in frequent postponement of

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NC: 2026:KHC-D:5639 HC-KAR adjudication. This adjournment is demoralizing and frustrating for a witness to such an extent that they prompt them to think several times whether to appear in the court or not when called by the court through summons. Because of these adjournments a witness is most likely to give up the idea of taking initiative and helping the court or administrative machinery. This tendency of the witness proves as a blessing for the accused, which might get acquitted either due to lack of evidence or benefit of doubt.

4. In order to get rid of cross-examination as early as possible witness may either give false evidence or turn hostile, that is, retracting from his previous statements. The former attorney general of India, Mr. Soli Sorabjee, apologetically commented:

"Nothing shakes public confidence in the criminal justice delivery system more than the collapse of the prosecution owing to witnesses turning hostile and retracting their previous statements. Hostility of witnesses resulting in failure of the prosecution has surfaced as a prominent excuse for the high rise in acquittals in criminal proceedings
CONCLUSION:

The role of witnesses in India throughout various time frames has regained its importance and inevitability in the criminal trials. Indian culture has assigned a place of prestige and stature to witnesses in ancient and medieval periods and the witnesses were treated with great respect and hence, it was taken up by them to be a sacrosanct duty to depose hence there was no requirement of specific protection for them. In the modern period, the importance of witnesses has been

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NC: 2026:KHC-D:5639 HC-KAR retained, however, the respect and dignity is lost in the process of the lengthy and tedious process of the trials. Hence, the Indian Legal system needs to reinstate that respect and dignity to the witnesses to ensure fair trials and victims being brought to justice in true sense."

(emphasis supplied by me) **9"

42. The Hon'ble Supreme Court in the case of RAMESH vs. STATE OF HARYANA¹⁰ had on occasion to deal on the aspect that how menace the witnesses are turning hostile and it is observed by the Hon'ble Apex Court as follows:

"40. In some of the judgments in past few years, this Court has commented upon such peculiar behavior of witnesses turning hostile and we would like to quote from few such judgments. In Krishna Mochi v. State of Bihar, this Court observed as under: (SCC pp. 104, para31) "31. It is matter of common experience that in recent times there has been sharp decline of ethical values in public life even in developed countries much less developing one, like ours, where the ratio of decline is higher. Even in ordinary cases, witnesses are not inclined to depose or their evidence is not found to be credible by courts for manifold reasons. One of the reasons may be **
Courtesy: Witness Protection In Criminal Trials In India Author by: Girish Abhyankar Asawari Abhyankar, Published by: Thomson Reuters, First Edition in 2018 (2017) 1 SCC 529

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NC: 2026:KHC-D:5639 HC-KAR that they do not have courage to depose against an accused because of threats to their life, more so when the offenders are habitual criminals or high-ups in the Government or close to powers, which may be political, economic or other powers including muscle power."

41. Likewise, in Zahira Habibullah (5) v. State of Gujarat, this Court highlighted the problem with following observations: (SCC PP. 396- 98, paras 40-41) "40. "Witnesses", as Bentham said: "are the eyes and ears of justice". Hence, the importance and primacy of the quality of trial process. If the witness himself is incapacitated from acting as eyes and ears of justice, the trial gets putrefied and paralyzed and it no longer can constitute a fair trial. The incapacitation may be due to several factors like the witness being not in a position for reasons beyond control, to speak the truth in the court or due to negligence or ignorance or some corrupt collusion. Time has become ripe to act on account of numerous experiences faced by the court on account of frequent turning of witnesses as hostile, either due to threats, coercion, lures and monetary considerations at the instance of those in power, their henchmen and hirelings, political clouts and patronage and innumerable other corrupt practices ingeniously adopted to smother and stifle truth and realities coming out to surface. Broader public and social interest require that the victims of the crime who are not ordinarily parties to

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NC: 2026:KHC-D:5639 HC-KAR prosecution and the interests of State representing by their presenting agencies do not suffer... there comes the need for protecting the witnesses. Time has come when serious and undiluted thoughts are to be bestowed for protecting witnesses so that ultimate truth presented before the Court and justice triumphs and that the trial is not reduced to mockery."

41. The State has a definite role to play in protecting the witnesses, to start with at least in sensitive cases involving those in power, who has political patronage and could wield muscle and money power, to avert trial getting tainted and derailed and truth becoming a casualty. As a protector of its citizens it has to ensure that during a trial in Court the witness could safely depose truth without any fear of being haunted by those against whom he had deposed.

Every State has a constitutional obligation and duty to protect the life and liberty of its citizens. That is the fundamental requirement for observance of the rule of law. There cannot be any deviation from this requirement because of any extraneous factors like, caste, creed, religion, political belief or ideology. Every State is supposed to know these fundamental requirements and this needs no retaliation (sic repetition). We can only say this with regard to the criticism levelled against the State of Gujarat. Some legislative enactments like the Terrorist and Disruptive Activities (Prevention) Act, 1987 (in short the "TADA Act") have taken note of the reluctance shown by

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NC: 2026:KHC-D:5639 HC-KAR witnesses to depose against people with muscle power, money power or political power which has become the order of the day. If ultimately truth is to be arrived at, the eyes and ears of justice have to be protected so that the interests of justice do not get incapacitated in the sense of making the proceedings before Courts mere mock trials as are usually seen in movies."

42. Likewise, in *Sakshi v. Union of India*¹¹, the menace of witnesses turning hostile was again described in the following words: (SCC pp.544-45, para 32) .

"32. The mere sight of the accused may induce an element of extreme fear in the mind of the victim or the witnesses or can put them in a state of shock. In such a situation he or she may not be able to give full details of the incident which may result in miscarriage of justice. Therefore, a screen or some such arrangement can be made where the victim or witnesses do not have to undergo the trauma of seeing the body or the face of the accused. Often the questions put in cross-examination are purposely designed to embarrass or confuse the victims of rape and child abuse. The object is that out of the feeling of shame or embarrassment, the victim may not speak out or give details of certain acts committed by the accused. It will, therefore, be better if the questions to be put by the accused in cross-examination are given in writing to the Presiding Officer of the Court, who may put the

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NC: 2026:KHC-D:5639 HC-KAR same to the victim or witnesses in a language which is not embarrassing. There can hardly be any objection to the other suggestion given by the petitioner that whenever a child or victim of rape is required to give testimony, sufficient breaks should be given as and when required. The provisions of sub-section (2) of section 327 Cr.P.C. should also apply in inquiry or trial of offences under

Section 354 and 377 IPC."

43. In State v. Sanjeev Nanda 12, the Court felt constrained in reiterating the growing disturbing trend: (SCC pp. 486-87, paras 99-

101) "99. Witness turning hostile is a major disturbing factor faced by the criminal courts in India. Reasons are many for the witnesses turning hostile, but of late, we see, especially in high profile cases, there is a regularity in the witnesses turning hostile, either due to monetary consideration or by other tempting offers which undermine the entire criminal justice system and people carry the impression that the mighty and powerful can always get away from the clutches of law thereby, eroding people's faith in the system.

100. This court in State of U.P. v. Ramesh Mishra and Anr. [AIR 1996 SC 2766] held that it is equally settled law that the evidence of hostile witness could not be totally rejected, if spoken in favour of the prosecution or the accused, but it can be subjected to closest scrutiny and that portion of the evidence which is

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consistent with the case of the
prosecution or defence may be
accepted. In K. Anbazhagan v.

Superintendent of Police and Anr., (AIR 2004 SC 524), this Court held that if a court finds that in the process the credit of the witness has not been completely shaken, he may after reading and considering the evidence of the witness as a whole with due caution, accept, in the light of the evidence on the record that part of his testimony which it finds to be creditworthy and act upon it. This is exactly what was done in the instant case by both the trial court and the High Court and they found the accused guilty.

101. We cannot, however, close our eyes to the disturbing fact in the instant case where even the injured witness, who was present on the spot, turned hostile.

This Court in Manu Sharma v. State (NCT of Delhi) 6, and in Zahira Habibullah Shaikh (5) v. State of Gujarat 10 had highlighted the glaring defects in the system like non-recording of the statements correctly by the police and the retraction of the statements by the prosecution witness due to intimidation, inducement and other methods of manipulation. Courts, however, cannot shut their

eyes to the reality. If a witness becomes hostile to subvert the judicial process, the Courts shall not stand as a mute spectator and every effort should be made to bring home the truth. Criminal judicial system cannot be overturned by those gullible witnesses who act under pressure, inducement or intimidation. Further, Section 193 of the IPC imposes

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NC: 2026:KHC-D:5639 HC-KAR punishment for giving false evidence but is seldom invoked."

44. On the analysis of various cases, following reasons can be discerned which make witnesses retracting their statements before the Court and turning hostile:

"(i) Threat/intimidation.

(ii) Inducement by various means.

(iii) Use of muscle and money power by the accused.

(iv) Use of Stock Witnesses.

(v) Protracted Trials.

(vi) Hassles faced by the witnesses during investigation and trial.

(vii) Non-existence of any clear-cut legislation to check hostility of witness."

45. Threat and intimidation has been one of the major causes for the hostility of witnesses. Bentham said: "witnesses are the eyes and ears of justice". When the witnesses are not able to depose correctly in the court of law, it results in low rate of conviction and many times even hardened criminals escape the conviction. It shakes public confidence in the criminal justice delivery system. It is for this reason there has been a lot of discussion on witness protection and from various quarters demand is made for the State to play a definite role in coming out with witness protection programme, at least in sensitive

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NC: 2026:KHC-D:5639 HC-KAR cases involving those in power, who have political patronage and could wield muscle and money power, to avert trial getting tainted and derailed and truth becoming a casualty. A stern and emphatic message to this effect was given in Zahira Habibullah's case¹⁰ as well.

46. Justifying the measures to be taken for witness protection to enable the witnesses to depose truthfully and without fear, Justice Malimath Committee Report on Reforms of Criminal Justice System, 2003 has remarked as under:

"11.3 Another major problem is about safety of witnesses and their family members who face danger at different stages. They are often threatened and the seriousness of the threat depends upon the type of the case and the background of the accused and his family. Many times crucial witnesses are threatened or injured prior to their testifying in the court. If the witness is still not amenable he may even be murdered. In such situations the witness will not come forward to give evidence unless he is assured of protection or is guaranteed anonymity of some form of physical disguise...Time has come for a comprehensive law being enacted for protection of the witness and members of his family."

43. The Hon'ble Supreme Court in the case of MAHENDER CHAWLA AND OTHERS vs. UNION OF

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NC: 2026:KHC-D:5639 HC-KAR INDIA AND OTHERS¹¹ were pleased to formulate "Witness Protection Scheme, 2018" at paragraph No.26. The said "Witness Protection Scheme, 2018" observed at paragraph No.26, which reads as under:

"26. At this stage, we reproduce Witness Protection Scheme, 2018 as filed, in its entirety:

"WITNESS PROTECTION SCHEME, 2018 PREFACE Aims & Objective:

The ability of a witness to give testimony in a judicial setting or to cooperate with law enforcement agencies and investigating officers without fear of intimidation or reprisal is essential in maintaining the rule of law. The objective of this Scheme is to ensure that the investigation, prosecution and trial of criminal offences is not prejudiced because witnesses are intimidated or frightened to give evidence without protection from violent or other criminal recrimination. It aims to promote law enforcement by facilitating the protection of persons who are involved directly or indirectly in providing assistance to criminal law enforcement agencies and overall administration of justice. Witnesses need to be given the confidence to come forward to assist law enforcement and judicial authorities with full assurance of safety. It is aimed to identify series of measures that may be adopted to safeguard witnesses and their family members from intimidation and threats against their lives, reputation and property.

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NC: 2026:KHC-D:5639 HC-KAR Need and justification for the scheme:

Jeremy Bentham has said that "Witnesses are the eyes and ears of justice". In cases involving influential people, witnesses turn hostile because of threat to life and property. Witnesses find that there is no legal obligation by the State for extending any security.

The Hon'ble Supreme Court of India also held in *State of Gujarat v. Anirudhsing* [*State of Gujarat v. Anirudhsing*, (1997) 6 SCC 514 : 1997 SCC (Cri) 946] that: "It is the salutary duty of every witness who has the knowledge of the commission of the crime, to assist the State in giving evidence." *Malimath Committee on Reforms of Criminal Justice System*, 2003 said in its report that 'By giving evidence relating to the commission of an offence, he performs a sacred duty of assisting the court to discover the truth'. In *Zahira Habibulla H. Sheikh v. State of Gujarat* [*Zahira Habibulla H. Sheikh v. State of Gujarat*, (2004) 4 SCC 158 : 2004 SCC (Cri) 999] while defining fair trial Hon'ble Supreme Court of India observed 'If the witnesses get threatened or are forced to give false evidence that also would not result in a fair trial'.

First ever reference to witness protection in India came in 14th Report of the Law Commission of India in 1958. Further reference on the subject is found in 154th and 178th Report of the Law Commission of India. 198th Report of the Law Commission of India titled as "Witness Identity Protection and Witness Protection Programmes, 2006" is dedicated to the subject.

The Hon'ble Supreme Court observed in *Zahira* case [*Zahira Habibulla H. Sheikh v. State of Gujarat*, (2004) 4 SCC 158 :

2004 SCC (Cri) 999] , "no country can afford to

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NC: 2026:KHC-D:5639 HC-KAR expose its morally correct citizens to the peril of being harassed by anti-social elements like rapists and murderers". The 4th National Police Commission Report, 1980 noted "prosecution witnesses are turning hostile because of pressure of accused and there is need of regulation to check manipulation of witnesses".

The legislature has introduced Section 195-A IPC in 2006 making criminal intimidation of witnesses a criminal offence punishable with seven years of imprisonment. Likewise, in statutes, namely, the Juvenile Justice (Care and Protection of Children) Act, 2015; the Whistle Blowers Protection Act, 2011; the Protection of Children from Sexual Offences Act (POCSO Act), 2012; and National Investigation Agency Act, 2008 and Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 also provides for safeguarding witnesses against the threats. However, no formal structured programme has been introduced as on

date for addressing the issue of witness protection in a holistic manner.

In recent years extremism, terrorism and organised crimes have grown and are becoming stronger and more diverse. In the investigation and prosecution of such crimes, it is essential that witnesses have trust in criminal justice system. Witnesses need to have the confidence to come forward to assist law enforcement and prosecuting agencies. They need to be assured that they will receive support and protection from intimidation and the harm that criminal groups might seek to inflict upon them in order to discourage them from cooperating with the law enforcement agencies and deposing before the court of law. Hence, it is high time that a scheme is put in place for addressing the issues of witness protection uniformly in the country. Scope of the Scheme:

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NC: 2026:KHC-D:5639 HC-KAR Witness protection may be as simple as providing a police escort to the witness up to the courtroom or using modern communication technology (such as audio video means) for recording of testimony. In other more complex cases, involving organised criminal group, extraordinary measures are required to ensure the witness's safety viz. anonymity, offering temporary residence in a safe house, giving a new identity, and relocation of the witness at an undisclosed place. However, witness protection needs of a witness may have to be viewed on case-to-case basis depending upon their vulnerability and threat perception.

1. Short Title and Commencement.--(a) The Scheme shall be called "Witness Protection Scheme, 2018".

(b) It shall come into force from the date of Notification.

Part I

2. Definitions.--

(a) "Code" means the Code of Criminal Procedure, 1973 (2 of 1974);

(b) "Concealment of Identity of Witness"

means and includes any condition prohibiting publication or revealing, in any manner, directly or indirectly, of the name, address and other particulars which may lead to the identification of the witness during investigation, trial and post- trial stage;

(c) "Competent Authority" means a Standing Committee in each District chaired by District and Sessions Judge with Head of the Police in the District as Member and

Head of the

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NC: 2026:KHC-D:5639 HC-KAR Prosecution in the District as its Member Secretary;

(d) "Family Member" includes
parents/guardian, spouse, live-in partner,

siblings, children, grandchildren of the witness;

(e) "Form" means "Witness Protection Application Form" appended to this Scheme; ...

(f) "In Camera Proceedings" means proceedings wherein the Competent Authority/Court allows only those persons who are necessary to be present while hearing and deciding the witness protection application or deposing in the court;

(g) "Live Link" means and include a live video link or other such arrangement whereby a witness, while not being physically present in the courtroom for deposing in the matter or interacting with the competent authority;

(h) "Witness Protection Measures" means measures spelt out in Clause 7, Part III, Part IV and Part V of the Scheme;

(i) "Offence" means those offences which are punishable with death or life imprisonment or an imprisonment up to seven years and above and also offences punishable under Sections 354, 354-A, 354-B, 354-C, 354-D and 509 IPC;

(j) "Threat Analysis Report" means a detailed report prepared and submitted by the Head of the Police in the District investigating the case with regard to the seriousness and credibility of the threat perception to the witness or his family members. It shall contain specific details about the nature of threats faced by the witness or his family to their life, reputation or property

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NC: 2026:KHC-D:5639 HC-KAR apart from analysing the extent, the person or persons making the threat, have the intent, motive and resources to implement the threats.

It shall also categorize the threat perception apart from suggesting the specific witness protection measures which deserves to be taken in the matter;

(k) "Witness" means any person, who possess information or document about any offence;

(l) "Witness Protection Application"

means an application moved by the witness in the prescribed form before a competent authority through its Member Secretary for seeking Witness Protection Order. It can be moved by the witness, his family member, his duly engaged counsel or IO/SHO/SDPO/Jail Superintendent concerned and the same shall preferably be got forwarded through the Prosecutor concerned;

(m) "Witness Protection Fund" means the fund created for bearing the expenses incurred during the implementation of Witness Protection Order passed by the Competent Authority under this scheme;

(n) "Witness Protection Order" means an order passed by the Competent Authority detailing the witness protection measures to be taken;

(o) "Witness Protection Cell" means a dedicated Cell of State/UT Police or Central Police Agencies assigned the duty to implement the witness protection order.

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NC: 2026:KHC-D:5639 HC-KAR Part II

3. Categories of witness as per threat perception.--

Category 'A': Where the threat extends to life of witness or his family members and their normal way of living is affected for a substantial period, during investigation/trial or thereafter.

Category 'B': Where the threat extends to safety, reputation or property of the witness or his family members, during the investigation/trial or thereafter.

Category 'C': Where the threat is moderate and extends to harassment or intimidation of the witness or his family member's, reputation or property, during the investigation/trial or thereafter.

4. State Witness Protection Fund.--

(a) There shall be a Fund, namely, the Witness Protection Fund from which the expenses incurred during the implementation of Witness Protection Order passed by the Competent Authority and other related expenditure, shall be met.

(b) The Witness Protection Fund shall comprise the following:--

(i) Budgetary allocation made in the Annual Budget by the State Government;

(ii) Receipt of amount of costs imposed/ordered to be deposited by the courts/tribunals in the Witness Protection Fund;

(iii) Donations/contributions from Philanthropist / Charitable institutions /

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NC: 2026:KHC-D:5639 HC-KAR Organisations and individuals permitted by Central/State Governments.

(iv) Funds contributed under Corporate Social Responsibility.

(c) The said Fund shall be operated by the Department/Ministry of Home under State/UT Government.

5. Filing of application before competent authority.-- The application for seeking protection order under this scheme can be filed in the prescribed form before the Competent Authority of the district concerned where the offence is committed, through its Member Secretary along with supporting documents, if any.

6. Procedure for processing the application.--(a) As and when an application is received by the Member Secretary of the Competent Authority, in the prescribed form, he shall forthwith pass an order for calling for the Threat Analysis Report from the ACP/DSP in charge of the concerned Police Sub-Division.

(b) Depending upon the urgency in the matter owing to imminent threat, the Competent Authority can pass orders for interim protection of the witness or his family members during the pendency of the application.

(c) The Threat Analysis Report shall be prepared expeditiously while maintaining full confidentiality and it shall reach the Competent Authority within five working days of receipt of the order.

(d) The Threat Analysis Report shall categorize the threat perception and also include

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NC: 2026:KHC-D:5639 HC-KAR suggestive protection measures for providing adequate protection to the witness or his family.

(e) While processing the application for witness protection, the Competent Authority shall also interact preferably in person and if not possible through electronic means with the witness and/or his family members/employers or any other person deemed fit so as to ascertain the witness protection needs of the witness.

(f) All the hearings on Witness Protection Application shall be held in-camera by the Competent Authority while maintaining full confidentiality.

(g) An application shall be disposed of within five working days of receipt of Threat Analysis Report from the Police Authorities.

(h) The Witness Protection Order passed by the Competent Authority shall be implemented by the Witness Protection Cell of the State/UT or the Trial Court, as the case may be. Overall responsibility of implementation of all witness protection orders passed by the Competent Authority shall lie on the Head of the Police in the State/UT.

However the Witness Protection Order passed by the Competent Authority for change of identity and/or relocation shall be implemented by the Department of Home of the State/UT concerned.

(i) Upon passing of a Witness Protection Order, the Witness Protection Cell shall file a monthly follow-up report before the Competent Authority.

(j) In case, the Competent Authority finds that there is a need to revise the Witness

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NC: 2026:KHC-D:5639 HC-KAR Protection Order or an application is moved in this regard, and upon completion of trial, a fresh Threat Analysis Report shall be called from the ACP/DSP in charge of the police sub-division concerned.

7. Types of protection measures.-- The witness protection measures ordered shall be proportionate to the threat and shall be for a specific duration not exceeding three months at a time. These may include:

(a) Ensuring that witness and accused do not come face to face during investigation or trial;

(b) Monitoring of mail and telephone calls;

(c) Arrangement with the telephone company to change the witness's telephone number or assign him or her an unlisted telephone number;

(d) Installation of security devices in the witness's home such as security doors, CCTV, alarms, fencing, etc.;

(e) Concealment of identity of the witness by referring to him/her with the changed name or alphabet;

(f) Emergency contact persons for the witness;

(g) Close protection, regular patrolling around the witness's house;

(h) Temporary change of residence to a relative's house or a nearby town;

(i) Escort to and from the court and provision of government vehicle or a State funded conveyance for the date of hearing;

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NC: 2026:KHC-D:5639 HC-KAR

(j) Holding of in-camera trials;

(k) Allowing a support person to remain present during recording of statement and deposition;

(l) Usage of specially designed vulnerable witness court rooms which have special arrangements like live video links, one way mirrors and screens apart from separate passages for witnesses and accused, with option to modify the image of face of the witness and to modify the audio feed of the witness' voice, so that he/she is not identifiable;

(m) Ensuring expeditious recording of deposition during trial on a day-to-day basis without adjournments;

(n) Awarding time to time periodical financial aids/grants to the witness from Witness Protection Fund for the purpose of relocation, sustenance or starting a new vocation/profession, as may be considered necessary;

(o) Any other form of protection measures considered necessary.

8. Monitoring and review.-- Once the protection order is passed, the Competent Authority would monitor its implementation and can review the same in terms of follow-up reports received in the matter. However, the Competent Authority shall review the Witness Protection Order on a quarterly basis based on the monthly follow-up report submitted by the Witness Protection Cell.

Part III

9. Protection of identity.-- During the course of investigation or trial of any serious

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NC: 2026:KHC-D:5639 HC-KAR offence, an application for seeking identity protection can be filed in the prescribed form before the Competent Authority through its Member Secretary.

Upon receipt of the application, the Member Secretary of the Competent Authority shall call for the Threat Analysis Report. The Competent Authority shall examine the witness or his family members or any other person it deem fit to ascertain whether there is necessity to pass an identity protection

order.

During the course of hearing of the application, the identity of the witness shall not be revealed to any other person, which is likely to lead to the witness identification. The Competent Authority can thereafter dispose of the application as per material available on record.

Once, an order for protection of identity of witness is passed by the Competent Authority, it shall be the responsibility of the Witness Protection Cell to ensure that identity of such witness/his or her family members including name/parentage/occupation/address/digital footprints are fully protected.

As long as identity of any witness is protected under an order of the Competent Authority, the Witness Protection Cell shall provide details of persons who can be contacted by the witness in case of emergency.

Part IV

10. Change of identity.-- In appropriate cases, where there is a request from the witness for change of identity and based on the Threat Analysis Report, a decision can be taken for

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NC: 2026:KHC-D:5639 HC-KAR conferring a new identity to the witness by the Competent Authority.

Conferring new identities includes new name/profession/parentage and providing supporting documents acceptable by the government agencies. The new identities should not deprive the witness from existing educational/professional/property rights.

Part V

11. Relocation of witness.-- In appropriate cases, where there is a request from the witness for relocation and based on the Threat Analysis Report, a decision can be taken for relocation of the witness by the Competent Authority.

The Competent Authority may pass an order for witness relocation to a safer place within the State/UT or territory of the Indian Union keeping in view the safety, welfare and wellbeing of the witness. The expenses shall be borne from the Witness Protection Fund.

Part VI

12. Witnesses to be apprised of the Scheme.-- Every State shall give wide publicity to this Scheme. The IO and the Court shall inform witnesses about the existence of "Witness Protection Scheme" and its salient features.

13. Confidentiality and preservation of records.-- All stakeholders including the Police, the Prosecution Department, Court Staff, Lawyers from both sides shall maintain full confidentiality and shall ensure that under no circumstance, any record, document or information in relation to the proceedings under this scheme shall be shared

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NC: 2026:KHC-D:5639 HC-KAR with any person in any manner except with the trial court/appellate court and that too, on a written order.

All the records pertaining to proceedings under this scheme shall be preserved till such time the related trial or appeal thereof is pending before a court of law. After one year of disposal of the last court proceedings, the hard copy of the records can be weeded out by the Competent Authority after preserving the scanned soft copies of the same.

14. Recovery of expenses.-- In case the witness has lodged a false complaint, the Home Department of the concerned Government can initiate proceedings for recovery of the expenditure incurred from the Witness Protection Fund.

15. Review.-- In case the witness or the police authorities are aggrieved by the decisions of the Competent Authority, a review application may be filed within 30 days of passing of the orders by the Competent Authority.

Witness Protection Application under Witness Protection Scheme, 2018 Before, (To be filed in duplicate) The Competent Authority, District.....

Application for:

1. Witness Protection
2. Witness Identity Protection
3. New Identity
4. Witness Relocation

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NC: 2026:KHC-D:5639 HC-KAR Particulars of the Witness (Fill in Capital):

Name Age Gender (Male/Female/Other) Father's/Mother's Name Residential Address Name and other details of family members of the witness who are receiving or perceiving threats Contact details (Mobile/e-mail) Particulars of criminal matter:

FIR No. Under Section Police Station District D.D. No. (in case FIR not yet registered) Cr. Case No. (in case of private complaint) Particulars of the accused (if available/known):

Name Address Phone No. Email id Name & other particulars of the person giving/suspected of giving threats Nature of threat perception. Please give brief details of threat received in the matter with specific date, place, mode and words used

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NC: 2026:KHC-D:5639 HC-KAR Type of witness protection measures prayed by/for the witness Details of interim/Urgent Witness Protection needs, if required Applicant/witness can use extra sheets for giving additional information.

_____ (Full Name with signature) Date:

Place:

UNDERTAKING

1. I undertake that I shall fully cooperate with the competent authority and the Department of Home of the State and Witness Protection Cell.

2. I certify that the information provided by me in this application is true and correct to my best knowledge and belief.

3. I understand that in case, information given by me in this application is found to be false, the competent authority under the scheme reserves the right to recover the expenses incurred on me from out of the Witness Protection Fund.

_____ (Full Name with signature) Date:

Place:"

36. We, accordingly, direct that:

36.1. This Court has given its imprimatur to the Scheme prepared by Respondent 1 which is approved hereby. It comes into effect forthwith.

36.2. The Union of India as well as the States and the Union Territories shall enforce the Witness Protection Scheme, 2018 in letter and spirit.

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NC: 2026:KHC-D:5639 HC-KAR 36.3. It shall be the "law" under Articles 141/142 of the Constitution, till the enactment of suitable parliamentary and/or State legislations on the subject.

36.4. In line with the aforesaid provisions contained in the Scheme, in all the district courts in India, Vulnerable Witness Deposition Complexes shall be set up by the States and Union Territories. This should be achieved within a period of one year i.e. by the end of the year 2019. The Central Government should also support this endeavour of the States/Union Territories by helping them financially and otherwise."

67. Recently, the Karnataka State has enforced a scheme namely the Karnataka Witness Protection Scheme, 2026. The police and the trial Court shall ensure strict implementation of the Karnataka Witness Protection Scheme, 2026. Therefore, the concerned authorities shall ensure issuance of directions in this regard under the said scheme and the guidelines issued by the Hon'ble Supreme Court to ensure protection of witnesses.

68. Therefore, upon considering the recorded conduct and misbehaviour of the Advocate, Sri. S. Rangaswamy, as recorded in the order sheet extracted

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NC: 2026:KHC-D:5639 HC-KAR above, Advocate, Sri. S. Rangaswamy, is amenable to face criminal contempt of Court and charges under Sections 186 and 228 of the Indian Penal Code, 1860 (Sections 221 and 267 of the Bharatiya Nyaya Sanhita, 2023) and he would be referred for disciplinary proceedings before the Karnataka State Bar Council, Bengaluru.

69. Therefore, for the aforesaid reasons as discussed, there is no procedural lapse committed by the learned Sessions Judge and the proceedings in conducting trial in S.C.No.5/2026 pending on the file of I Additional District and Sessions Judge, Koppal (Sitting at Gangavathi), is completely in accordance with the procedures mandated under the Code of Criminal Procedure, 1973/Bharatiya Nagarika Suraksha Sanhita and is completely following the principles of law laid down by the Hon'ble Supreme Court as above stated. Therefore, the petition is liable to be dismissed with exemplary cost.

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NC: 2026:KHC-D:5639 HC-KAR

70. Accordingly, I answer Point No.(i) in the 'negative' and Point No.(ii) in the 'affirmative'.

71. Hence, I proceed to pass the following:

ORDER

i) The petition is dismissed with cost of Rs.1,00,000/- payable by accused Nos.1 to 9 and 12 to the District Legal Services Authority, Koppal.

ii) The learned Sessions Judge/Presiding Officer of the Court of I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, shall continue the further proceedings as per law and dispose of the case as expeditiously as possible.

iii) For the reasons stated in the order, place this matter before Hon'ble the Chief Justice, High Court of Karnataka and also before the learned Advocate General requesting to consider

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NC: 2026:KHC-D:5639 HC-KAR initiating proceedings for criminal contempt of Court against Sri S. Rangaswamy, Advocate, at the discretion of the Hon'ble the Chief Justice and the learned Advocate General.

iv) The Additional Registrar General is directed to place this order before the Karnataka State Bar Council, Bengaluru, to take necessary action/ initiate proceedings against Sri S.Rangaswamy, Advocate, for his misconduct as stated above.

v) The Chief Ministerial Officer of the Court of the Court of I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, is directed to file complaint against Sri S.Rangaswamy, Advocate, for the offence punishable under Sections 186 and 228 of the Indian Penal Code, 1860 (Sections 221 and 267 of the Bharatiya Nyaya Sanhita, 2023) before the concerned jurisdictional Judicial Magistrate First Class

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NC: 2026:KHC-D:5639 HC-KAR Court, in whose jurisdiction the Court of I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, is situated.

vi) The Additional Registrar General, High Court of Karnataka, Dharwad Bench, Dharwad, is directed to communicate operative portion of this order immediately to the Court of Principal District and Sessions Judge, Koppal and to the I Additional District and Sessions Judge, Koppal, sitting at Gangavathi, through e-mail, fax and official telephone numbers of the Court of Principal District and Sessions Judge, Koppal and to the I Additional District and Sessions Judge, Koppal, sitting at Gangavathi.

Sd/-

(HANCHATE SANJEEVKUMAR) JUDGE MRK para Nos.1 to 28.

PMP para Nos.29 to end.

CT-AN List No.: 1 Sl No.: 1